



Ordinary Meeting

BUSINESS PAPER

Tuesday, 25 August 2020 at 7:00 pm

Griffith City Council Chambers
Phone: (02) 6962 8100 Fax (02) 6962 7161
Web: www.griffith.nsw.gov.au Email: admin@griffith.nsw.gov.au



COUNCILLORS

John Dal Broi (Mayor)
Doug Curran (Deputy Mayor)
Glen Andreazza
Simon Croce
Deb Longhurst
Eddy Mardon
Rina Mercuri
Anne Napoli
Mike Neville
Brian Simpson
Christine Stead
Dino Zappacosta

jdalbroi@griffith.com.au
dcurran@griffith.com.au
gandreazza@griffith.com.au
scroce@griffith.com.au
dlonghurst@griffith.com.au
emardon@griffith.com.au
rmercuri@griffith.com.au
anapoli@griffith.com.au
mneville@griffith.com.au
bsimpson@griffith.com.au
cstead@griffith.com.au
dzappacosta@griffith.com.au

MEMBERS OF THE PUBLIC CAN ADDRESS COUNCIL IN THE FOLLOWING WAYS

Council generally meets every second and fourth Tuesday of the month at 7.00 pm in the Council Chambers.

Addressing the Council on Business Paper matters

Members of the public are welcome to attend Council Meetings and address the Council on agenda items provided proper notice is given. A Public Address to Council Declaration Form can be completed on-line or you may contact Council's Governance Manager on (02) 6962 8100. Application to address Council must be received by 12:00 noon on the day of the meeting.

Notice of Motion via Councillor

You are able to lobby a Councillor to raise a Notice of Motion to have a matter considered by the Council at a future meeting.

Petition

A petition can be presented to the Council through a Councillor. If you would like to present a petition to an Ordinary Meeting of Council, please contact one of the Councillors to arrange.

Customer Request Management system

The Customer Request Management system (CRM) manages the processing of customer requests. Customer requests can be then easily responded to, allocated to responsible officers and checked. The system will automatically escalate requests that have not been actioned. To log a request, please contact Council's Customer Service Team on 02 6962 8100.

Direct correspondence to the General Manager

You can write directly to the General Manager about your issue or concern via letter or email. You can contact the General Manager at admin@griffith.nsw.gov.au or to: The General Manager, PO Box 485 Griffith NSW 2680.

For more information on public participation see [Council's Agency Information Guide](#).

REPORT AUTHORS AND AREAS OF RESPONSIBILITY

Senior Management Team

General Manager
Director Economic & Organisational Development
Director Business, Cultural & Financial Services
Director Infrastructure and Operations
Director Sustainable Development
Director Utilities

Brett Stonestreet
Shireen Donaldson
Max Turner
Phil King
Phil Harding
Graham Gordon

Economic & Organisational Development

Governance Manager/Public Officer and Right to Information Officer
HR & Risk Manager
Workforce Planning Manager
Community Development Coordinator
IT Manager
Tourism Manager
Information Manager
Information Management Administrator

Leanne Austin
Kylie Carusi
Nick DeMartin
Peta Dummett
Katherine Elliott
Mirella Guidolin
Joanne Savage
Wendy Vaccari

Business, Cultural & Financial Services

Finance Manager
Asset Management Coordinator
Library Manager
Griffith Regional Arts and Museum Manager
Leisure Services Manager

Vanessa Edwards
Andrew Keith
Karen Tagliapietra
Raina Savage
Alan Anderson

Infrastructure & Operations

Works Manager - Maintenance
Works Manager - Construction
Parks & Gardens Manager
Fleet & Depot Manager

Manjit Chugha
Shree Shrestha
Peter Craig
Steve Croxon

Sustainable Development

Planning & Environment Manager
Principal Strategic & Development Assessment Planner
Senior Development Assessment Planner
Principal Planner Urban Design & Strategic Planning
Project Planner
Environmental Health & Compliance Coordinator
Principal Officer Environment
Corporate Property Officer & Native Title Coordinator
Building Certification Coordinator
Airport Facility Coordinator

Carel Potgieter
Vacant
Vacant
Pete Badenhorst
Nathan Beer
Vacant
Vacant
Daphne Bruce
Anthea Crack
Shannon King

Utilities

Engineering Design & Approvals Manager
Waste Operations Manager
Water & Wastewater Manager

Joe Rizzo
John Roser
Durgananda Chaudhary

**ORDINARY MEETING OF GRIFFITH CITY COUNCIL
TO BE HELD IN GRIFFITH CITY COUNCIL CHAMBERS ON
TUESDAY, 25 AUGUST 2020 AT 7:00 PM**

MEETING NOTICE

Notice is hereby given that an Ordinary Meeting of Council will be held in the Griffith City Council Chambers on **Tuesday, 25 August 2020**.

Due to Covid-19 restrictions, seating in the public gallery is limited and bookings to attend in person are required through Eventbrite. The Council Meeting will be livestreamed through Council's Facebook page at www.facebook.com/griffithcitycouncil.

Persons in the gallery are advised that the proceedings of the meeting will be recorded for the purpose of ensuring the accuracy of the Minutes.

Griffith City Council now supplies broadcast and on-demand audio of Ordinary Meetings of Council which may be broadcast via local media and an audio version of the Council Meeting is available on the Council website which can be listened to on a mobile device or PC.

Persons attending a Council meeting consent to the possibility that their voice may be broadcast to the public. Audio of Council Meetings cannot be copied, recorded, reproduced, reused or transmitted without the prior written consent of the General Manager.

Under the Local Government Act 1993, no other recording is permitted without the authority of the Council. Recording includes a video camera and any electronic device capable of recording speech.

Members of the public may address Council in relation to the items listed in this Agenda by contacting Council on (02) 6962 8100 or by completing an [online application](#) by 12.00 noon on the day of the meeting.

The agenda for the meeting is:

- 1 Council Prayer and Acknowledgment of Country
- 2 Apologies and Requests for Leave of Absence
- 3 Confirmation of Minutes
- 4 Business Arising
- 5 Declarations of Interest
- 6 Presentations
- 7 Mayoral Minutes
- 8 General Manager's Report

- | | | |
|------|-----|--|
| CL01 | p12 | DA 20/2020 7-9 Salvanza Crescent GRIFFITH - 7 Units and Strata Subdivision |
| CL02 | p54 | Draft Local Strategic Planning Statement |
| CL03 | p57 | NSW Treasury Corporation (TCorp) Loan Agreement - Griffith Regional Sports Precinct & Griffin Green Housing Project |
| CL04 | p59 | Appointment of Councillor to headspace Consortium |
| CL05 | p62 | Adoption of Amended Model Code of Conduct and Procedures for the Administration of the Model Code of Conduct for Local Councils in NSW |
- 9 Information Reports
- | | | |
|------|-----|---|
| CL06 | p66 | Delivery Program Progress Report - 30 June 2020 |
| CL07 | p72 | Minutes of the Christmas Working Group Meeting |
- 10 Adoption of Committee Minutes
- | | | |
|--|-----|--|
| | p77 | Minutes of the Lake Wyangan & Catchment Management Committee Meeting held on 4 August 2020 |
| | p84 | Minutes of the Communities Committee Meeting held on 23 July 2020 |
| | p86 | Minutes of the Traffic Committee Meeting held on 11 August 2020 |
| | p90 | Minutes of the Griffith Community Centre Committee Meeting held on 5 August 2020 |
- 11 Business with Notice – Rescission Motions
- 12 Business with Notice – Other Motions
- 13 Outstanding Action Report
- | | | |
|--|-----|---------------------------|
| | p93 | Outstanding Action Report |
|--|-----|---------------------------|
- 14 Matters to be dealt with by Closed Council

Brett Stonestreet

GENERAL MANAGER

**ORDINARY MEETING OF GRIFFITH CITY COUNCIL
HELD IN GRIFFITH CITY COUNCIL CHAMBERS ON
TUESDAY, 11 AUGUST 2020 COMMENCING AT 7:00 PM**

PRESENT

The Mayor, John Dal Broi in the Chair; Councillors, Glen Andreazza, Simon Croce, Doug Curran, Deb Longhurst, Eddy Mardon (ZOOM), Rina Mercuri, Mike Neville (ZOOM), Brian Simpson, Christine Stead and Dino Zappacosta

STAFF

General Manager, Brett Stonestreet, Director Economic & Organisational Development, Shireen Donaldson, Director Utilities, Graham Gordon, Director Sustainable Development, Phil Harding, Director Infrastructure & Operations, Phil King, Director Business, Cultural & Financial Services, Max Turner and Minute Taker, Brittany Everett

MEDIA

Shaun Paterson, The Area News

1 COUNCIL PRAYER AND ACKNOWLEDGEMENT OF COUNTRY

The Meeting opened with Councillor Deb Longhurst reading the Council prayer and the Acknowledgement of Country.

2 APOLOGIES AND REQUESTS FOR LEAVE OF ABSENCE

20/248

RESOLVED on the motion of Councillors Doug Curran and Glen Andreazza that an apology be received from Councillor Anne Napoli and a leave of absence granted.

3 CONFIRMATION OF MINUTES

20/249

RESOLVED on the motion of Councillors Christine Stead and Glen Andreazza that the minutes of the Ordinary Meeting of Council held in Griffith City Council Chambers on 28 July 2020, having first been circulated amongst all members of Council, be confirmed with the an amendment made to Minute Number 20/229, CL01 - DA 57/2020(1) Change of Use To a Place Of Public Worship.

Removal of part (a)(2) of the resolution:

- (2) Measures to ensure that any funerals are restricted to weekends to avoid saturation of public parking facilities in the locality.

4 BUSINESS ARISING

Nil

5 DECLARATIONS OF INTEREST

Pecuniary Interests

Councillors making a pecuniary interest declaration are required to leave the meeting during consideration of the matter and not return until the matter is resolved.

Councillor Glen Andreazza

CL01 DA 20/2020 7-9 Salvanza Crescent GRIFFITH - 7 Units and Strata Subdivision

Reason – Councillor Andreazza has a family member who owns a dwelling in Salvanza Crescent.

Councillor Simon Croce

CL01 DA 20/2020 7-9 Salvanza Crescent GRIFFITH - 7 Units and Strata Subdivision

Reason – Councillor Croce's employer has made a submission regarding this development application.

Significant Non-Pecuniary Interests

Councillors making a significant non-pecuniary interest declaration are required to leave the meeting during consideration of the matter and not return until the matter is resolved.

Councillor Brian Simpson

CL03 COVID19 Community Grants Relief Fund - Round 1 Applicants

Reason – Councillor Simpson is a financial member of the Sporting Shooters Association of Australia.

Less Than Significant Non-Pecuniary Interests

Councillors making a less than significant non-pecuniary interest declaration may stay in the meeting and participate in the debate and vote on the matter.

Councillor Dino Zappacosta

CL01 DA 20/2020 7-9 Salvanza Crescent GRIFFITH - 7 Units and Strata Subdivision

Reason – Councillor Zappacosta has met some of the objectors to the development on site.

Councillor Christine Stead

CL01 DA 20/2020 7-9 Salvanza Crescent GRIFFITH - 7 Units and Strata Subdivision

Reason – Councillor Stead has spoken to objectors and has visited the site.

Councillor Mike Neville

CL01 DA 20/2020 7-9 Salvanza Crescent GRIFFITH - 7 Units and Strata Subdivision

Reason – Councillor Neville has been approached by the proponent and objectors to discuss aspect of the report before Council.

Councillor Rina Mercuri

CL01 DA 20/2020 7-9 Salvanza Crescent GRIFFITH - 7 Units and Strata Subdivision

Reason – Councillor Mercuri has received emails and met with some of the objectors on site.

Councillor Simon Croce

CL03 COVID19 Community Grants Relief Fund - Round 1 Applicants

Reason – Councillor Croce is a member of the Griffith Feral Joggers is not a holder of any executive office or position.

6 PRESENTATIONS

Nil

7 MAYORAL MINUTES

Nil

8 GENERAL MANAGER'S REPORT

Councillors Glen Andreazza and Simon Croce left the meeting having declared a Pecuniary interest, the time being 7:08 PM.

CL01 DA 20/2020 7-9 SALVANZA CRESCENT GRIFFITH - 7 UNITS AND STRATA SUBDIVISION

RESOLVED on the motion of Councillors Doug Curran and Rina Mercuri that the matter be raised from the table.

20/250

RESOLVED on the motion of Councillors Christine Stead and Brian Simpson that the meeting suspend standing orders to allow Mr Joseph Puntoriero, Mr James Scremin (JZ Management) and Mr Zep Lanza (JZ Management) to address Council.

A written submission provided by Ms Laura Andreazza and Mr Vincent Musolino was read to Council by the General Manager, Brett Stonestreet.

20/251

RESOLVED on the motion of Councillors Doug Curran and Christine Stead that the meeting resume standing orders.

20/252

RESOLVED on the motion of Councillor Dino Zappacosta that the matter be **LAI**D ON THE **TABLE** until Council Meeting 25 August 2020.

In accordance with the Local Government Action (section 375A - Recording of voting on planning matters) Council must record the Councillor's vote in relation to the matter.

For

Councillor John Dal Broi
Councillor Doug Curran
Councillor Deb Longhurst
Councillor Eddy Mardon
Councillor Rina Mercuri
Councillor Mike Neville
Councillor Brian Simpson
Councillor Christine Stead
Councillor Dino Zappacosta

Against

The division was declared PASSED by 9 votes to 0.

Councillors Glen Andreazza and Simon Croce returned to the meeting, the time being 7:43 PM.

CL02 RESIDENTIAL DEVELOPMENT CONTROL PLAN INCLUDING SUBDIVISION AND PARKING CODES

20/253

RESOLVED on the motion of Councillors Doug Curran and Brian Simpson that the meeting suspend standing orders to allow Mr Michael McFeeters (MJM Consulting Engineers) to address Council.

20/254

RESOLVED on the motion of Councillors Doug Curran and Christine Stead that the meeting resume standing orders.

20/255

RESOLVED on the motion of Councillors Simon Croce and Rina Mercuri that:

- (a) Council endorse the Griffith Residential Development Control Plan as amended in Attachment A of the report.
- (b) In endorsing the Griffith Residential Development Control Plan, Council decline the request to amend the staging provisions for the Collina Growth Area as requested in Submission 7 (see Attachment B and C of the report).
- (c) Council request the Applicant of development application 170/2020 withdraw the application as the development of lands in Stage 2 of the Collina Growth Area is considered premature at this time.
- (d) Council delegate to the Director of Sustainable Development to place the Griffith Residential Development Control Plan on Council's website and the Department of Planning, Industry and Environment's Planning Portal.

A division was called for, voting on which was as follows:

For	Against
Councillor John Dal Broi	
Councillor Glen Andreazza	
Councillor Simon Croce	
Councillor Doug Curran	
Councillor Deb Longhurst	
Councillor Eddy Mardon	
Councillor Rina Mercuri	
Councillor Mike Neville	
Councillor Brian Simpson	
Councillor Christine Stead	
Councillor Dino Zappacosta	

The division was declared PASSED by 11 votes to 0.

Councillor Brian Simpson left the meeting having declared a Significant Non-Pecuniary interest, the time being 8:06 PM.

CL03 COVID19 COMMUNITY GRANTS RELIEF FUND - ROUND 1 APPLICANTS

20/256

RESOLVED on the motion of Councillors Doug Curran and Glen Andreazza that Council endorse the following COVID 19 Community Grants Relief Fund applications received:

- Southern Sports Academy – Not recommended
- Griffith & District Football Association - \$4,291.00
- Sporting Shooters Association of Australia (NSW) Griffith Inc. – Revised to \$1217.00
- Griffith Basketball Association - Revised to \$2,183.00
- Griffith Little Athletics - \$3,660.00
- Rotary Club of Griffith Inc. - \$2,995.00
- Griffith Community Centre - Not recommended
- Yenda Rugby League Football Club - \$5,000.00
- Griffith Local Aboriginal Land Council (GLALC) – Not recommended
- Griffith Junior Rugby Union Club - \$5,000.00
- Griffith Feral Joggers - \$5,000.00

Total = \$29,346.00

Councillor Brian Simpson returned to the meeting, the time being 8.10 PM.

Councillor Simon Croce left the meeting, the time being 8:10 PM.

CL04 DESIGN COLOUR OPTIONS - GRIFFITH REGIONAL SPORTS PRECINCT PROJECT (GRALC SITE)

20/257

RESOLVED on the motion of Councillors Glen Andreazza and Deb Longhurst that Council endorses the proposed colour schemes (as per attachments) as the preferred finish in the development of the 50M Pool and associated amenities building at Griffith Regional Aquatic Leisure Centre.

Councillor Simon Croce returned to the meeting, the time being 8:13 PM.

CL05 LOW COST LOAN INITIATIVE FUNDING AGREEMENT - CBD UPGRADE

20/258

RESOLVED on the motion of Councillors Doug Curran and Christine Stead that:

- (a) Council endorse the application of the Council Seal onto the Low Cost Loans Initiative Funding Agreement between Griffith City Council and the Office of Local Government for the CBD Upgrade Project.
- (b) The Mayor and General Manager to sign and return the Low Cost Loans Initiative Funding Agreement.

9 INFORMATION REPORTS

Nil

10 ADOPTION OF COMMITTEE MINUTES

Nil

11 BUSINESS WITH NOTICE – RESCISSION MOTIONS

Nil

12 BUSINESS WITH NOTICE – OTHER MOTIONS

Nil

13 OUTSTANDING ACTION REPORT

20/259

RESOLVED on the motion of Councillors Christine Stead and Glen Andreazza that the meeting suspend standing orders to allow Bill Lancaster to address Council.

20/260

RESOLVED on the motion of Councillors Doug Curran and Dino Zappacosta that community members who have sent submissions to the Draft Cemetery and Crematorium Plan be invited to attend the next Cemetery Working Group Meeting.

20/261

RESOLVED on the motion of Councillors Rina Mercuri and Deb Longhurst that the meeting resume standing orders.

20/262

RESOLVED on the motion of Councillors Rina Mercuri and Mike Neville that the report be noted.

14 MATTERS TO BE DEALT WITH BY CLOSED COUNCIL

Nil

There being no further business the meeting terminated at 8.26 PM.

Confirmed:

CHAIRPERSON

CLAUSE	CL01
PROPOSAL	DA 20/2020 7-9 SALVANZA CRESCENT GRIFFITH - 7 UNITS AND STRATA SUBDIVISION
PROPERTY	Lot 3 DP 1188137
LOCATION	7-9 Salvanza Crescent GRIFFITH
ZONING	R1 General Residential
APPLICABLE PLANNING INSTRUMENT	Griffith Local Environmental Plan 2014
EXISTING DEVELOPMENT	Vacant land
APPLICANT	JZ Management Pty Ltd
OWNER	JZ Management Pty Ltd
DIRECTORS OF COMPANY (IF APPLICABLE)	N/A
APPLICATION DATE	22 January 2020
REASON FOR REFERRAL	Objections received
FROM	Ian Dencker, Relief Planner
TRIM REF	20/76609

SUMMARY

Proposal

This proposal is to construct seven single storey 2-bedroom units, a front boundary fence as well as separating fences, a common driveway with visitor car parking and landscaping. The proposal also includes a strata title subdivision.

Type of Development

The proposed development is defined as *multi-dwelling housing* and is permissible development under the provisions of the Griffith Local Environmental Plan 2014. It is “local” development.

Consultation

The proposal was notified from 30 January – 14 February 2020. At the close of the notification period 12 submissions have been received regarding the proposal.

Main Issues

Issues raised can be summarised as follows together with a town planning response:

- Lack of parking – **Response: parking now complies (see below).**
- Overdevelopment - **Response: development does not exceed density controls.**
- Overflow parking to Salvanza Crescent - **Response: overflow parking is expected to be minimal and unlikely to create an unacceptable impact.**
- Overlooking and loss of privacy - **Response: development is single storey (note: double storey is permissible) and as such, overlooking and loss of privacy will be minimal.**

- Inadequate street frontage for anticipated garbage and recycling bins - **Response:** frontage to Salvanza Crescent (approximately 16m) is sufficiently wide to accommodate the bins associated with the 7 proposed units. Notwithstanding, a special condition requiring the submission of a waste management plan for the approval of Council staff (prior to a construction certificate being issued) is recommended.
- Location of subject site on a bend in Salvanza Crescent not well suited to multi-dwelling development, including from a traffic safety perspective - **Response:** the subject land is relatively large (1843m²) allowing a single storey unit development to be constructed which will blend in with the locality, and as conditioned, the proposed 7 units are not expected to create any traffic safety issues.
- Density proposed is not compatible with surrounding dwellings and internal layout is poor - **Response:** the proposed single storey development is compatible with the character of Salvanza Crescent and as noted above, the proposal complies with the applicable density controls. Internal layout of the 2 bedroom units is functional and will meet the needs of future residents.
- Lack of private open space and landscaping - **Response:** the proposed private open space is adequate for this type of development. Patios and raised garden beds are proposed with sizes ranging from 23m² to 41m². In addition, a special condition requiring the submission of a detailed landscape plan for the approval of Council staff (prior to a construction certificate being issued) is recommended.
- Poor streetscape presentation i.e. blank wall to Salvanza Crescent - **Response:** A window has been added to the unit fronting Salvanza Crescent and street presentation is acceptable.
- Existing and proposed levels are not clearly defined on plans submitted - potential unacceptable overlooking of adjoining properties is likely - **Response:** the plans submitted are adequate and any overlooking from the single storey development will be minimal. Notwithstanding, and as detailed above, a special condition requiring the submission of a detailed landscape plan for the approval of Council staff (prior to a construction certificate being issued) is recommended. This landscape plan will need to clearly indicate all levels and heights of all external landscaping elements, including patios, fencing and raised garden beds.
- Light overspill is not adequately addressed - i.e. proposed BBQ area - **Response:** the proposed BBQ area has been removed from amended plans submitted.
- Various non-compliances with GCC DCP21 - **Response:** the development complies with all key development controls including height, density and parking.

In accordance with Council's Community Participation Plan the submissions have been forwarded to the applicant to address, and revised plans were received by Council 11 May 2020 with the following response by the applicant:

The overall design has been amended to reflect the objections received following public notification and Council's concerns regarding non-compliance with DCP 21. The major design changes are as follows:

- (1) Move Units 1 & 2 back 1 M to increase the front setback
- (2) Add a window to the Living Room of Unit 1 facing Salvanza Crescent
- (3) Remove the Common BBQ area
- (4) Create 2 additional car parks

In summary these changes seek to address the key concerns relating to parking, street presentation as well as light overspill from the proposed BBQ area. The proposal before Council complies with:

- Height controls
- Density controls
- Parking controls
- Street presentation controls
- Wyangan Precinct controls

The applicant has designed a single storey development which will fit in well with the locality.

RECOMMENDATION

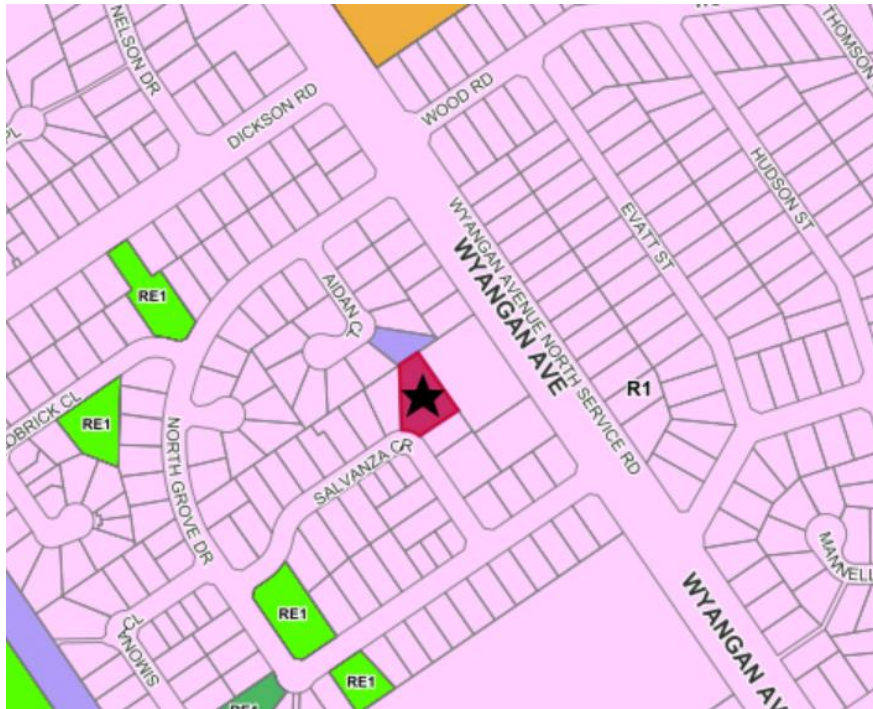
- (a) The report be raised from the table.**
- (b) Pursuant to Section 4.16(a) of the Environmental Planning and Assessment Act, 1979, it is recommended Council issue development consent for Development Application 20/2020 for 7 units and strata subdivision, subject to the conditions set out in Attachment 'A' of this assessment report.**
- (c) The application be delegated to the Director Sustainable Development for preparation and issue of the notice of determination.**

In accordance with the Local Government Act (section 375A - Recording of voting on planning matters) Council must record the Councillor's vote in relation to this matter.

SITE DESCRIPTION

The Statement of Environmental Effects (SEE) and Council records describe that the subject site is Lot 3 of DP 1188137 known as 7-9 Salvanza Crescent Griffith. The lot has an area of 1843m². The property is an irregular shape. The front (Salvanza Crescent) boundary to the south is curved and has an appropriate length of 16m. The south eastern boundary is 36m long. The north eastern boundary is 55m long. The south western boundary is 51m long. The north western boundary is 17m long. The site falls to the front Salvanza Crescent boundary. It is clear undeveloped land with a flat surface and has a fall of approximately 1.5m from the rear to the front of the site.

LOCATION MAP



BACKGROUND

Site History

Current land use	Vacant residential land
Previous approvals	None from reviewing Council records

Timeline of Events Pertaining to the Development Application

- DA lodgement: 22 January 2020
- Notification: 30 January – 14 February 2020
- Request for additional information – 17 March 2020
- Amended plans received – 11 May 2020

PROPOSAL IN DETAIL

The SEE describes the proposed development as follows:

This proposal is to construct seven, 2-bedroom units, a front boundary fence as well as separating fences, a common driveway with visitor car parking and landscaping. The proposal also includes a Strata title Subdivision to allow the individual units to be sold on completion.

The design of the seven 2-bedroom units is such that, the floor plans are spacious and functional. Each unit will consist of three separate attached dual occupancies and a single stand-alone unit. The units have a total floor area between 123 and 131 square metres. They will have 2 bedrooms, spacious bathroom & separate toilet, one car garage, spacious living and dining area, functional kitchen & laundry area and an outdoor patio.

ASSESSMENT UNDER THE ENVIRONMENTAL PLANNING AND ASSESSMENT ACT 1979

In determining a development application, a consent authority is to take into consideration Section 4.15 of the Environmental Planning and Assessment Act, 1979. The following matters are of relevance to the development the subject of the development application.

SECTION 4.15(1)(a)(i) any environmental planning instrument

Griffith Local Environmental Plan 2014

As mentioned earlier in this report, the proposed development is defined as *multi dwelling housing* and is permissible development under the provisions of the Griffith Local Environmental Plan 2014.

Multi dwelling housing means 3 or more dwellings (whether attached or detached) on one lot of land, each with access at ground level, but does not include a residential flat building.

Clauses of the GLEP 2014 which relate to the application include:

Part 7 Additional local provisions

Clause 7.1 Earthworks: Earthworks: Earthworks associated with construction of the dwellings are proposed. Standard conditions of consent are recommended.

Clause 7.2 Flood Planning: Council's engineers have advised as follows:
According to Griffith CBD Overland Flow FRMS&P 2013 (WMA Water):

- *This is Flood prone Land for events larger than 1:100 years.*
- ***There is no flooding for the 1:100 year Flood.***
- *Estimated PMF Flood Level in the proposed development area ranges from 132.44m – 133.84m AHD, Low to High Hazard.*
- *Floor levels are subject to Council's Floor Heights Policy. The floor level for habitable room areas is to be 410 mm above the existing natural ground level.*
- *To establish the exact depth of flood waters on any part of an allotment, the applicant is advised to obtain a survey plan of the allotment.*

Standard conditions are recommended.

Clause 7.10 Essential services: Development consent must not be granted to development unless the consent authority is satisfied that any of the following services that are essential for the development are available or that adequate arrangements have been made to make them available when required:

- (a) *the supply of water:* available in the locality.
- (b) *the supply of electricity:* Available in the locality.
- (c) *the disposal and management of sewage:* Sewerage is available in the locality.
- (d) *stormwater drainage or on-site conservation:* Council's drainage system services the site. Onsite detention is required to be designed for the proposal.
- (e) *suitable vehicular access:* The proposed vehicle accessway is suitable for the development.

State Environmental Planning Policies

- SEPP (Building Sustainability Index: BASIX) 2004: A valid Basix Certificate has been issued and provided with this application.
- SEPP No. 55 Remediation of Land: Past and present zoning, previous and existing uses of the site and surrounding lands, do not indicate that contamination of the land is likely.

SECTION 4.15(1)(a)(ii) any draft environmental planning instrument

Not Applicable

SECTION 4.15(1)(a)(iii) any development control plan**Draft Development Control Plan No. 20: Off Street Parking Policy**

The following development controls apply to the development:

- 1.5 spaces per 2 bedroom dwelling;
- 1 space per 5 dwellings for visitor parking

Required spaces	Proposed spaces
7 x 2-bedroom dwellings = 10.5 spaces required + 1.4 visitor spaces required	7 x 2-bedroom dwellings = 10.5 spaces proposed (single car garage / dwelling) 1.4 visitor spaces proposed
11.9 onsite spaces required	12 spaces proposed

The development complies with the onsite parking space requirements.

Development Control Plan No. 21: Residential Development Policy:**Precinct**

The subject site is located in *Precinct 6 - Wyangan*. The proposal meets the projected future objectives for this precinct by providing villa style development, single storey in height.

Density

The proposal meets the density criteria in terms of site area requirements for the proposed 7 units.

Setbacks

Six metre setback to frontage applies to the site, however the proposal is seeking a concession to this requirement. Part of the front dwelling (Unit 1) is to be setback 4.5m, a 1.5m encroachment.

The applicant has provided the following info on the proposed setback:

A concession is sort for the reasons;

- (1) *The front boundary fence combined with the stepped building design and landscaping gives the appearance of a greater setback.*
- (2) *The building encroachment is less than 1/3 rd of the frontage of the lot*



Proposed Street View

It is considered that the concession to the front setback can be supported as there are instances of existing buildings in the locality with setbacks of less than 6m. The proposed development is acceptable from a visual design perspective and will contribute positively to the streetscape, and therefore it can be supported.

Design & height: The proposal is for single-storey dwellings of brick veneer construction with colorbond metal roofing. The design is suitable for the locality.

Privacy & Security: Privacy of the dwellings has been considered with window locations offset to avoid direct views into adjoining dwellings.

Private Open Space: Each dwelling has been provided with an outdoor area for private open space, with these areas being directly accessible from the main living areas. The applicant has sought a concession to the 50m² area and has provided the following information:

The POS for each unit is between 23m² and 41m². A concession is sought for the following reason: Each unit has a patio...

It is considered that the concession to private open space can be supported. The proposed single storey design is preferable to a 2 storey development with a smaller footprint and more private open space (but at the expense of greater height) and given this, it can be supported.

Landscaping: The applicant has advised that 28% of the development will be landscaped and is seeking a concession to the 40% stated in the DCP. It is considered that the proposal achieves the objectives of landscaping requirements contained in DCP 21 and as stated above, preferable to a 2 storey development with more landscaping.

Overall, the proposed development has demonstrated merit in achieving general compliance with DCP 21, it is of an acceptable design, and can be supported in the form presented.

SECTION 4.15(1)(a)(iiia) any planning agreement

Not Applicable

SECTION 4.15(1)(a)(iv) the regulations

The regulations (Sections 92, 93 and 94 of the EP&A Regulation) have been considered as part of this development.

SECTION 4.15(1)(b) the likely impacts of the development

The subject site is located within a precinct within relatively easy access to the CBD. Existing development in the locality is typified by single storey low density residential development and some multi dwelling housing development similar to what is being proposed. The proposal, due to its siting and design, is unlikely to have any negative impacts on adjoining properties in terms of bulk, overshadowing or privacy. In terms of compatibility, the proposal is compatible with existing residential uses.

In terms of vehicle access and traffic generation, the traffic associated with this development will mostly be residential in nature and the existing road network is able to cater for the demands of this development. The development proposes constructing a two-way vehicle access point of 6m wide, which is considered adequate to cater for this proposal.

SECTION 4.15(1)(c) the suitability of the site

The subject site is zoned R1 General Residential and the permissibility of the development under Griffith Local Environmental Plan 2014 provides a broad indication that the site is suitable for the proposed development. Based on the assessment under this and other sections within this report, it is considered that the site is suitable for the proposed development.

SECTION 4.15(1)(d) any submissions made in accordance with the Act or the Regulations

Yes - see detailed discussion earlier in this report.

SECTION 4.15(1)(e) the public interest

The Public Interest	COMMENTS
Federal, State, Local Government interests and community interests	The health and safety of the public will not be adversely affected by the proposal. The proposal is not contrary to any Government policy and is not inconsistent with either the Griffith Housing Strategy or the Draft Griffith Residential Development Control Plan.

OPTIONS**OPTION 1**

As per the Recommendation.

OPTION 2

Refuse the application for reasons provided by Council.

OPTION 3

Defer the DA (not recommended in this report).

POLICY IMPLICATIONS

There are no adverse policy implications should Council decide to approve this application.

FINANCIAL IMPLICATIONS

There are no adverse financial implications should Council decide to approve this application. Normal developer contributions are payable as set out below:

Section 64

	Additional tenements
Water	7 x 2br units – 4.2 additional tenements payable at unit ETs (0.6) with \$32,747.40 payable
Sewer	7 x 2br units – 5.25 additional tenements payable at unit ETs (0.75) with \$28,691.25 payable

Section 7.12

The cost of the development is provided as \$1,100,000.00 and therefore a 1% fee of \$11,000.00 is payable.

LEGAL/STATUTORY IMPLICATIONS

Not Applicable

ENVIRONMENTAL IMPLICATIONS

Not Applicable

COMMUNITY IMPLICATIONS

Not Applicable

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item 9.1 Encourage considered planning, balanced growth and sustainable design.

CONSULTATION

Senior Management Team

ATTACHMENTS

- | | |
|---|----|
| (a) Conditions ↓ | 21 |
| (b) Submissions Received ↓ | 37 |
| (c) Amended Plans (under separate cover) (confidential) | |

Conditions of Consent

Administrative Conditions

The development must be carried out in accordance with the following conditions of consent.

(1) Approved Development

Development consent has been granted for a 7 Unit Development and Strata Subdivision at Lot 3 DP 1188137 7-9 Salvanza Crescent GRIFFITH.

It is advised that the proposed development has been assessed in regards to the provision of the Griffith Local Environmental Plan 2014 and is considered to be a multi dwelling housing development, which is defined as:

Multi dwelling housing means 3 or more dwellings (whether attached or detached) on one lot of land, each with access at ground level, but does not include a residential flat building.

The development must be implemented in accordance with Development Application No. 20/2020 received by Council on 23 January 2020 and the below mentioned plans and/or documents, except where amended in red on the attached plans or modified by the conditions of this consent.

Drawing / Plan	Date Received by Council	Prepared or Drawn By
Site Plan	11 May 2020	Zeplan Drafting Services
Landscape Plan	11 May 2020	Zeplan Drafting Services
Floor Plans	11 May 2020	Zeplan Drafting Services
Elevations	11 May 2020	Zeplan Drafting Services
Strata Subdivision Layout	11 May 2020	Zeplan Drafting Services

Document	Date Received by Council	Prepared or Drawn By
Statement of Environmental Effects	23 January 2020	J Z Management
Addendum to Statement of Environmental Effects	11 May 2020	J Z Management
BASIX Certificate No. 1071421M	23 January 2020	Certified Energy

If there is any inconsistency between the approved plans and documents referred to above, the conditions shall prevail.

(2) Construction Certificate (Building Works)

Prior to construction of the approved development, it is necessary to obtain a Construction Certificate for the building works. The Construction Certificate can be issued either by Council or a private certifier.

(3) Provision of Services

The applicant is to be responsible for all amplification, extension and adequate provision for connection to services at their own expense. The work is to be in accordance with Council's *Engineering Guidelines – Subdivisions and Development Standards* and relevant authorities' specifications.

(4) Lapsing of Consent

In accordance with Section 4.53 of the Environmental Planning and Assessment Act, 1979 this consent is valid for a period of five (5) years from the date of consent.

Note 1: Development consent for the purpose of the erection of a building or the subdivision of land or the carrying out of a work does not lapse if building, engineering or construction work relating to the development is lawfully and physically commenced on the land to which the consent applies before the date on which the consent would otherwise lapse.

Note 2: Development consent for the purpose of the use of the land, building or work the subject of the consent does not lapse if it is actually commenced the date on which the consent would otherwise lapse.

(5) Damage to Council property

If any damage is occasioned to Council property during construction and associated works, the cost of repairs will be recoverable. It is therefore requested that any damage which is obvious before works commence be immediately notified to Council to avoid later conflict.

(6) Aboriginal Heritage

If any Aboriginal object is discovered and/or harmed in, or under the land, while undertaking the proposed development activities, the proponent must:

1. Not further harm the object.
2. Immediately cease all work at the particular location.
3. Secure the area so as to avoid further harm to the Aboriginal object.
4. Notify the Department of Planning, Industry and Environment as soon as practical on 131555, providing any details of the Aboriginal object and its location.
5. Not recommence any work at the particular location unless authorised in writing by the Department of Planning, Industry and Environment.

In the event that skeletal remains are unexpectedly encountered during the activity, work must stop immediately, the area secured to prevent unauthorised access and NSW Police and the Department contacted of Planning, Industry and Environment.

(7) Existing Services

The applicant must check that the proposed works do not affect any Council, electricity, telecommunications, gas or other services. Any required alterations to services will be at the developer's expense.

(8) National Construction Code

All building work must comply with and be carried out in accordance with the requirements of the Building Code of Australia.

All plumbing and drainage works must comply with and be carried out in accordance with the requirements of the Plumbing Code of Australia.

(9) Other Cultural Heritage

Should any cultural artefacts, archaeological relics or any object having interest due to its age or association with the past be located during the course of works, all works are to cease immediately and notification shall be provided to the Office of Environment and Heritage in accordance with the *National Parks and Wildlife Act 1974*. Work shall not recommence in the area until this is authorised by the Office of Environment and Heritage.

Note. Depending on the significance of the object uncovered, an archaeological assessment and excavation permit under the Heritage Act 1977 may be required before further the work can continue.

(10) Property Number

The proposed dwellings have been allocated the following street numbers:

- Proposed Unit 1: **Unit 1 / 7-9 Salvanza Crescent**
- Proposed Unit 2: **Unit 2 / 7-9 Salvanza Crescent**
- Proposed Unit 3: **Unit 3 / 7-9 Salvanza Crescent**
- Proposed Unit 4: **Unit 4 / 7-9 Salvanza Crescent**
- Proposed Unit 5: **Unit 5 / 7-9 Salvanza Crescent**
- Proposed Unit 6: **Unit 6 / 7-9 Salvanza Crescent**
- Proposed Unit 7: **Unit 7 / 7-9 Salvanza Crescent**

These numbers are to be displayed at the street frontage or any other position which is clearly visible from the street at completion.

(11) Fence location and design

The person with the benefit of this consent shall ensure that the proposed fence complies with the following:

- (a) The fence shall be contained wholly within the property boundaries. No part of the fence, or its footings, shall encroach onto the road reserve or adjoining properties.
- (b) It is the responsibility of the owner to verify the location of the boundary and this is recommended to be achieved by a survey report.
- (c) All gates shall be designed so that they do not open onto the nature strip.
- (d) The water meter shall be accessible and is to be located outside of the fence boundary.

Prior to the issue of a Construction Certificate for Building Works

Prior to commencing construction work, you will need a Construction Certificate for building works issued by Griffith City Council or an Accredited Certifier. Before a Construction Certificate can be issued, compliance with the following conditions is to be demonstrated.

(12) Stormwater Drainage

All stormwater runoff shall be directed to Council's street system via the onsite stormwater detention system for disposal. Stormwater runoff shall not be permitted to flow over property boundaries onto the adjoining properties unless legally created easements in accordance with Section 88B of the Conveyancing Act are created. Detailed design drawings and hydraulic calculations for the proposed drainage system are to comply with Council's Engineering Guidelines – Subdivision and Development Standards and Council's Stormwater Drainage & Disposal Policy (CS-CP-310) and are to be submitted to Council and approved by Council's Engineers **prior to the issue of a Construction Certificate for Building Works.**

(13) Onsite detention

Onsite stormwater detention is to be created onsite for the critical storm event. The proposed onsite stormwater detention system is to be designed to ensure stormwater discharge from the proposed development does not exceed the calculated discharge of the site being developed with 60% of impervious area. Design and details in accordance with Council's Engineering Guidelines – Subdivision and Development Standards, Council's Onsite Detention Policy (CS-CP-404) and Council's Stormwater Drainage & Disposal Policy (CS-CP-310) are to be submitted to Council and approved by Council's Engineers **prior to the issue of a Construction Certificate for Building Works.**

A qualified Civil Engineer with experience in Hydraulic Analysis shall design and certify the Onsite Detention System, which shall be maintained for the life of the project. The consultant is to sign off all drawings and calculations and provide details of Professional Indemnity Insurance.

(14) Signage for water ponding in detention areas

Areas that are subject to water ponding as a result of storm events are to have appropriate warning signs erected. Details of sign location and type to be submitted to Council and approved by Council's Engineers **prior to the issue of a Construction Certificate for Building Works.** Signage is to be in accordance with Council's Onsite Detention Policy (CS-CP-404).

(15) Building over and/or near sewerage

Prior to the issue of a Construction Certificate for Building Works, design drawings for proposed Unit 7 to be built near Council's sewer main are to be submitted to Council for approval. The drawings are to be in accordance with Council's *Buildings – Construction Near Water & Sewerage Assets Policy (CS-CP-316)*, Council's *Engineering Guidelines - Subdivision and Development Standards* and the *Water Services Association of Australia - Gravity Sewerage Code of Australia WSA 02—2014*. The design drawings are to include, but not be limited to, the following details;

- a. No loading shall be exerted within the zone of influence and the invert of the asset.
- b. No piercing is permitted within one (1) metre of the main
- c. Where the edge of the Council asset to the edge of the roofline is less than 500mm, the height of the roof is to be at least 2300mm.
- d. A minimum one (1) metre clearance is required from the outer edge of any

manholes and/or sewer property connections.

e. The attached indemnity form completed, and relevant fees paid in accordance with Council's current Revenue Policy.

It is the responsibility of the developer to arrange for Council's sewer main to be accurately located onsite. This can be achieved by making a formal application to Council's Water and Sewer Department through Council's Customer Service Department. The design drawings are to be completed by a suitably qualified and experienced structural engineer.

(16) Water meter location

Prior to the issue of a Construction Certificate for Building Works, an amended plan detailing the proposed water meters being located a minimum of one (1) metre from the edge of the proposed driveway is to be submitted to Council and approved by Council's Engineers.

(17) Turning path diagrams

Prior to the issue of a Construction Certificate for Building Works amended plans and turning path diagrams are to be submitted to Council and approved by Council's Engineers. The amended plans are to detail that vehicles can enter and leave the proposed development in a forward direction, without encroaching (including vehicle overhang) into the proposed garden areas.

(18) Section 7.12 Development Contributions

In accordance with Section 7.12 of the *Environmental Planning and Assessment Act 1979* (former S94A) and Council's Development Contribution Plan 2010, this development requires the payment of a 7.12 contribution. The Section 7.12 Contribution is required towards the provision of public amenities and services in accordance with Councils adopted *Section 94A Contributions Plan 2010 (Amendment 2013)*. A copy of this policy is publicly available from Council's website www.griffith.nsw.gov.au.

Total payment shall be \$11,000.00 (1% of the proposed cost of carrying out the development).

The contribution is to be paid **prior to the issue of the Construction Certificate**, unless other arrangements acceptable to Council are made. Payment is to be in the form of cash or bank cheque. Where bonding is accepted a bank guarantee is required.

(19) Section 64 Water Supply, Sewerage and Drainage Contributions

Pursuant to Section 64 of the *Local Government Act 1993* and the *Water Management Act 2000*, this development requires a payment of a S64 contribution. The amount payable at the time of issue of this consent is set out in the table below.

Table of Contributions Required – Water, Sewerage & Drainage

Type of contribution	Location	Amount per tenement	Number of tenements	Amount to be paid
Water supply	1	\$7,797.00	$7 \times 0.6 = 4.2$	\$32,747.40
Sewerage	1	\$5,465.00	$7 \times 0.75 = 5.25$	\$28,691.25
Total				\$61,438.65

The total amount payable will be subject to review in accordance with Council's Revenue Policy current at the time of payment.

The contribution is to be paid **prior to the issue of the Construction Certificate** unless other arrangements acceptable to Council are made.

The contribution is exclusive of the fees for the connection of water services to the individual allotments. Payment is to be in the form of cash or bank cheque. Where bonding is accepted a bank guarantee is required.

Reason: Pursuant to Section 64 of the *Local Government Act 1993* and the *Water Management Act 2000*, the applicant is required to apply to Council for a Compliance Certificate under the provisions of S305 of the *Water Management Act 2000*.

(20) Long Service Levy

For work costing \$25,000 or more, a Long Service Levy shall be paid. For further information please contact the Long Service Payments Corporation on their Helpline 13 1441

(21) Flow Rate and Pressure Test

Prior to the issue of a Construction Certificate for Building Works, a flow rate and pressure test shall be carried out, at the applicant's expense, to justify connection to Council's existing water main. Where the existing water main cannot provide adequate flows and pressure for the proposed development, Council's water main is to be upgraded to ensure Council's water system can supply the minimum requirements outlined in Council's *Water – Supply Levels of Service Policy (WS-CP-210)* for the proposed development serviced by this infrastructure. All costs associated for the water main upgrading will be borne by the applicant.

(22) Extension of Council's Sewer Main

Council's sewer main is to be extended from 5 Salvanza Crescent (Lot 6 DP 1257847) to the southeast boundary of the subject allotment. A new concrete sewer manhole is to be installed at the end of the sewer pipeline. All internal sewer infrastructure required to service the proposed development is to be connected to the new sewer manhole. The design for pipelines, as well as manholes and other associated components normally associated with sewerage main installations are to be in accordance with the standards prescribed in Council's *Engineering Guidelines-Subdivisions and Development Standards* and the *Water Services Association of Australia - Gravity Sewerage Code of Australia WSA 02—2014*. Details and designs are to be submitted to Council and approved by Council's Engineers **prior to the issue of a Construction Certificate for Building Works**.

(23) Waste Management Plan

The submission of a waste management plan for the approval of Council staff is required **prior to the issue of a Construction Certificate for Building Works**.

(24) Landscape Plan

The submission of a detailed landscape plan for the approval of Council staff is required **prior to the issue of a Construction Certificate for Building Works**. The landscape plan will need to clearly indicate all levels and heights of all external landscaping elements, including patios, fencing and raised garden beds.

Prior to Commencement of Works

The following conditions need to be met prior to the commencement of works. The necessary documentation and information must be provided to the Principal Certifying Authority (PCA), as applicable.

(25) Traffic Control Plan

A traffic control plan is to be submitted to Council satisfying the provisions of Australian Standard 1742.3, for acceptance **prior to the commencement of work within Council's road reserve**. Strict compliance to the traffic control plan is to be maintained throughout the duration of the construction work.

(26) Sedimentation and Erosion Controls

Effective dust, noise, sedimentation and erosion controls are to be implemented prior to the commencement of site works. This is to include (as a minimum):

- a) the installation of a sediment fence with returned ends across the low side of the works; and
- b) a temporary gravel driveway into the site. All vehicles needing to access the site are to use the temporary driveway.

The control measures are to be installed **prior to the commencement of site works** and maintained during works in order to ensure that site materials do not leave the site and/or enter the stormwater system and to maintain public safety/amenity.

(27) Floor levels (flood levels and/or inundation)

Floor levels are subject to Council's *Buildings - Floor Heights Policy*. The floor levels of habitable rooms for new buildings associated with the proposed development shall not be less than 410mm above ground level. This is to be measured from the highest point of the existing ground level relative to the building platform, prior to excavation. In the event that this level is unachievable, documentary evidence, including a detailed design by a Certified Engineer on how inundation effects may be mitigated around the building can be managed, is to be submitted to Council for approval.

For verification of the floor height having been achieved, Council will accept a survey mark placed on top of kerb perpendicular to the allotment boundary and documented by the Surveyor at peg-out stage, which is able to be recovered and verified by the Certifier in concert with the Principal Contractor, during construction. The Surveyors report shall

nominate the applicable kerb height and highest natural ground level at the building footprint in the report prepared.

(28) External Service Providers

Prior to the commencement of works written advice shall be obtained from the electricity supply authority, an approved telecommunications carrier and an approved gas carrier (where relevant) stating that satisfactory arrangements have been made to ensure provision of adequate services to the development.

(29) Accessway levels

Driveway construction is subject to Council's *Engineering Guidelines - Subdivisions and Development Standards*. The finished level of the driveway at the property boundary shall be 130mm above the top of kerb. Upon completion of the formwork and string lines for the driveway, the applicant shall arrange for Council's Surveyors to inspect these works **prior to the pouring of concrete for the driveway**. In the event that this level is unachievable, documentary evidence, including a detailed design is to be submitted to Council for approval **prior to the commencement of driveway construction**.

Failure to construct to the given levels or without Council approval will render the owner liable for any necessary reconstruction costs to alter work not in conformity with such levels.

(30) Protection of adjoining areas

A temporary hoarding or temporary construction site fence must be erected between the work site and adjoining lands before the works begin and must be kept in place until after the completion of the works if the works:

- (a) could cause a danger, obstruction or inconvenience to pedestrian or vehicular traffic, or
- (b) could cause damage to adjoining lands by falling objects, or
- (c) involve the enclosure of a public place or part of a public place.

(31) Notification of Commencement

Prior to commencing work the person having the benefit of the consent has:

- (a) given at least 2 days notice to the council, and the principal certifier if not the council, of the person's intention to commence the erection of the building, and
- (b) if not carrying out the work as an owner-builder, has:
 - i appointed a principal contractor for the building work who must be the holder of a contractor licence if any residential building work is involved, and
 - ii notified the principal certifying authority of any such appointment, and
 - iii unless that person is the principal contractor, notified the principal contractor of any critical stage inspections and other inspections that are to be carried out in respect of the building work.

(32) Erection of Signs

A sign must be erected in a prominent position on any site on which building work, subdivision work or demolition work is being carried out:

- (a) showing the name, address and telephone number of the principal certifying authority for the work, and

- (b) showing the name of the principal contractor (if any) for any building work and a telephone number on which that person may be contacted outside working hours, and
- (c) stating that unauthorised entry to the work site is prohibited.

Any such sign is to be maintained while the building work, subdivision work or demolition work is being carried out, but must be removed when the work has been completed.

This clause does not apply in relation to building work, subdivision work or demolition work that is carried out inside an existing building that does not affect the external walls of the building.

Note. Principal certifying authorities and principal contractors must also ensure that signs required by this clause are erected and maintained (see clause 227A).

(33) *Home Building Act 1989* requirements

Residential building work for which the contract price exceeds \$20,000 must not be carried out unless the principal certifying authority for the development to which the work relates (not being the council) has given the council written notice of the following information:

In the case of work for which a principal contractor is required to be appointed:

- (a) the name and licence number of the principal contractor, and
- (b) the name of the insurer by which the work is insured under Part 6 of that Act,

In the case of work to be done by an owner-builder:

- (a) the name of the owner-builder, and
- (b) if the owner-builder is required to hold an owner-builder permit under that Act, the number of the owner-builder permit.

If arrangements for doing the residential building work are changed while the work is in progress so that the information notified in accordance with the above becomes out of date, further work must not be carried out unless the principal certifying authority for the development to which the work relates (if not the council) has given the council written notice of the updated information.

Prior to Commencement of Civil Works

The following conditions need to be met prior to the commencement of Civil Works. The necessary documentation and information must be provided to Griffith City Council, as applicable.

(34) Application for works on Council's sewer main

Application is to be made to Council's Water and Sewer Department by the appointed licensed plumber **prior to the commencement of work** on Council's sewer main.

During Construction

The following conditions of consent must be complied with at all times during the demolition, excavation and construction of the development.

(35) Kerb Adaptors

Where required, kerb outlets for stormwater to be saw cut with suitably approved kerb adaptors to be installed using 20 MPa concrete.

(36) Hours of Work

All building, excavation and demolition work is to be carried out between 7:00am and 6:00 pm Monday to Saturday with no work to be undertaken on Sundays or Public Holidays.

Variation to these times may be permitted on submission of a written request to Council indicating the date/s and time/s of the proposed work. It is also recommended that you liaise with occupants of any surrounding dwellings prior to carrying out work outside these hours.

(37) No obstruction of public way

The public walkway must not be obstructed by any materials, vehicles, refuse, skips or the like, without prior approval of Council.

(38) SafeWork NSW

The developer is required to comply with any and all requirements of the SafeWork NSW.

(39) Toilet Facilities

Adequate toilet facilities are to be provided on the site throughout the demolition/construction phase of the development. Such toilet facilities are to be provided, at the ratio of one (1) toilet for every twenty (20) persons (or part thereof) employed/working on the site. Each toilet provided must be a standard flushing toilet and must be connected to a public sewer, or an accredited sewage management facility approved by council. If connection to either a public sewer or an accredited sewage management facility is not practicable, it shall be connected to some other sewage management facility approved by council. Toilet facilities must be provided and functioning **prior to the commencement of work**. In this clause:

accredited sewage management facility means a sewage management facility to which Part 2 of the Local Government (General) Regulation 2005 applies, being a sewage management facility that is installed or constructed to a design or plan the subject of a certificate of accreditation referred to in clause 41 of the Regulation.

public sewer has the same meaning as it has in the Local Government (General) Regulation 2005.

sewage management facility has the same meaning as it has in the Local Government (General) Regulation 2005.

(40) Maintenance of site

All materials and equipment must be stored wholly within the work site unless an approval to store them elsewhere is held.

Waste materials (including excavation, demolition and construction waste materials) must be managed on the site and then disposed of at a waste management facility.

Copies of receipts stating the following must be provided to the consent authority on request:

- (a) the place to which waste materials were transported,
- (b) the name of the contractor transporting the materials,
- (c) the quantity of materials transported off-site and recycled or disposed of.

Any run-off and erosion control measures required must be maintained within their operating capacity until the completion of the works to prevent debris escaping from the site into drainage systems, waterways, adjoining properties and roads.

During construction:

- (a) all vehicles entering or leaving the site must have their loads covered, and
- (b) all vehicles, before leaving the site, must be cleaned of dirt, sand and other materials, to avoid tracking these materials onto public roads.

At the completion of the works, the work site must be left clear of waste and debris.

(41) Shoring and adequacy of adjoining property

If the development involves an excavation that extends below the level of the base of the footings of a building, structure or work (including any structure or work within a road or rail corridor) on adjoining land, the person having the benefit of the development consent must, at the person's own expense:

- (a) protect and support the building, structure or work from possible damage from the excavation, and,
- (b) where necessary, underpin the building, structure or work to prevent any such damage.

The condition does not apply if the person having the benefit of the development consent owns the adjoining land or the owner of the adjoining land has given consent in writing to that condition not applying.

(42) Access location

The driveway access to the lot is to be located a minimum of one (1) metre away from all services (e.g.: stormwater pits, electricity poles, service pits, etc.), and a minimum of one (1) metre away from neighbouring property boundaries.

(43) Survey of Building Location

A survey report, prepared by a registered and practising Land Surveyor is required to verify the siting of the building in relation to adjacent boundaries. This survey shall be undertaken prior to work proceeding past the completion of footings and before concrete is poured. A copy of this report shall be submitted to Council **prior to the issue of the Occupation Certificate.**

(44) Required documentation

For the duration of any work on site, the builder must maintain a copy of the specification, stamped approved plans, copy of Development Consent (Notice of Determination) and Construction Certificate on site.

(45) Plumbing and Drainage Inspections

The carrying out of Water Supply Work, Sewerage Work and Stormwater Drainage Work requires an approval under Section 68 of the Local Government Act 1993. Approval and Inspection is required by the Regulatory Authority being the NSW Office of Fair Trading who has delegated authority to Griffith City Council to carry out these tasks.

The following inspections are required to be carried out.

- (a) Internal / External sanitary drainage (including sanitary plumbing) prior to covering.
- (b) Stormwater Drainage. - External drains connection from base of down pipes to designated disposal point.

Note: All plumbing and drainage work is to be carried out by licensed tradesman and necessary S68 approval permits obtained through Council prior to works commencing, by submitting a Notice of Works form.

Note: A Certificate of Compliance will need to be submitted, along with a Works as Executed Drawing, at the completion of works. Inspection fees will apply in accordance with Councils revenue policy and are required to be paid prior to inspection.

Should adequate notice not be given for cancellation of an inspection, or if works have not progressed to a stage where an inspection can be completed, a default penalty may be imposed upon the applicant by Council.

Twenty four (24) hours notice is to be given to Council's Customer Service by telephoning (02) 6962 8100 to arrange for an inspection to be carried out.

Prior to the issue of the Subdivision Certificate

Before Council will release the subdivision plan, you will need to demonstrate compliance with the following conditions. The necessary documentation and information must be provided to the Principal Certifying Authority (PCA), as applicable.

(46) Maintenance bond

A Bond Application and a monetary bond is to be submitted to Council to provide a twelve (12) month maintenance period for civil works relating to Council's infrastructure. It is the applicant's responsibility to notify the relevant departments regarding the commencement and finish of the maintenance period and adequate arrangements are to be made regarding any relevant inspections required.

A five percent (5%) bond of the total cost of works is to be submitted to Council for the works that need maintenance **prior to the issue of a Subdivision Certificate.**

(47) Separate water services

Prior to the issue of a Subdivision Certificate the proposed allotments are to be connected to Council's potable water system in accordance with Council's *Water – Supply and Charges Policy (WS-CP-202)*. The connection to Council's water main must be applied for separately. Where the connection is 25mm or greater to serve the needs of the development, the application shall be supported with hydraulic calculations prepared by an appropriate consultant, including reference to a water pressure and flow rate test of the adjacent mains.

(48) Easement for Services

Prior to the issue of the Subdivision Certificate easements shall be established pursuant to Section 88B of the *Conveyancing Act 1919* where services cross property boundaries. The location and widths of the easements are to be specified in the instrument for the purpose of protecting and identifying the services.

(49) Protection of Onsite Detention System

The onsite detention, associated floodways and flow paths shall be protected by a Section 88E covenant in favour of Griffith City Council. The instrument is to be submitted to Council and approved, **prior to the issue of a Subdivision Certificate.**

(50) External Service Providers

The applicant is to ensure there is sufficient power supply, telecommunication services and gas supply to service the proposed allotments. Documentary evidence from approved service providers is to be submitted to council **prior to the issue of a Subdivision Certificate**, confirming that satisfactory arrangements have been made.

(51) Subdivision Certificate

An application for a subdivision certificate is required on completion of all conditions of Development Consent. The application is to be lodged with and approved by Council as the consent authority. The application should include the original plan of subdivision plus six (6) copies.

Prior to the issue of the Occupation Certificate

An Occupation Certificate must be obtained from the Principal Certifying Authority (PCA) prior to occupation of the new building, part of the building, or a change of building use. Prior to issue of an Occupation Certificate compliance with the following conditions is to be demonstrated.

(52) Installation of stormwater infrastructure

All works associated with stormwater drainage and onsite detention must be completed in accordance with Council's Engineering Guidelines – Subdivision and Development Standards, Council's Onsite Detention Policy (CS-CP-404), and Council's Stormwater Drainage & Disposal Policy (CS-CP-310), to Council's satisfaction, **prior to the issue of an Occupation Certificate.**

(53) Separate water meters

Prior to the issue of an Occupation Certificate, separate water meters are to be connected to Council's potable water system in accordance with Council's *Water – Supply and Charges Policy (WS-CP-202)*. The connection to Council's water main must be applied for separately. Where the connection is 25mm or greater to serve the needs of the development, the application shall be supported with hydraulic calculations prepared by an appropriate consultant, including reference to a water pressure and flow rate test of the adjacent mains.

(54) Internal driveways

Prior to the issue of an Occupation Certificate the internal driveway to the proposed units are to be constructed of concrete in accordance with Council's *Engineering Guidelines – Subdivisions and Development Standards* and Council's *Development Control Plan 21 – Residential Development Policy*.

(55) Accessway construction

Prior to the issue of an Occupation Certificate, a concrete vehicular crossing is to be constructed between the property boundary and road carriageway off Salvanza Crescent. Accessway construction for the proposed development is to be completed in accordance with the approved plan (Zeplan Drafting Services, Drawing No. A001, Job No. JZ1219, Received 12 May 2020) and Council's *Engineering Guidelines – Subdivisions and Development Standards*.

(56) Linemarking

Delineation of parking bays and directional lines are to be implemented in accordance with the approved plans and *Australian Standard 2890.1:2004*. Parking bay delineation and directional lines are to be installed **prior to the issue of an Occupation Certificate**.

Prior to the issue of an Occupation Certificate, parking bays are to be delineated in accordance with the approved plans and *Australian Standard 2890.1:2004*.

(57) Number of Car Spaces

The number of onsite car parking spaces to be provided for the development shall comply with the table below.

Car parking allocation	Number
Residential spaces	11
Visitor spaces (to be made accessible space)	1
TOTAL	12

Parking spaces shall have dimensions of 2.6 metres x 5.5 metres in accordance with Council's *Development Control Plan No. 20 Off-Street Parking Policy*. Parking bays are to be clearly delineated. Spaces adjacent to walls or other obstructions, which may affect door openings or vehicle manoeuvring, are to be widened by an additional 300mm on the side of the obstruction(s).

NOTE: This consent does not guarantee compliance with the Disability Discrimination Act, 1992 and the developer should investigate their liability under the Act. The applicant's attention is drawn to the Australian Standard AS 2890.6:2009 in respect of acceptable standards of design and requirements.

All onsite parking shall be provided **prior to the issue of an Occupation Certificate**.

(58) Basix

Prior to the issue of the Occupation Certificate the applicant is to demonstrate to the Principal Certifier compliance with all required Basix Certificate commitments.

(59) Submission of Survey of Building Location

A survey report, prepared by a registered and practising Land Surveyor is required to verify the siting of the building in relation to adjacent boundaries. This survey shall be submitted to Council **prior to the issue of the Occupation Certificate**.

(60) Drainage Diagram

Where development includes the installation of sanitary plumbing and drainage works between the building and Council's sewer, the applicant is required to submit to Council a drainage diagram. This diagram shall be prepared and submitted to Council **prior to the issue of the Occupation Certificate**. The diagram shall be drawn to scale at a ratio of 1:100 showing the location of the buildings and fittings and all pipelines, junctions, inspection openings and the like. Alternatively, Council can be requested to carry out the work upon payment of the fee listed in Council's current Revenue Policy

(61) Engineering Inspections

The applicant is required to pay for all inspections carried out by Council's Engineers as per Council's current revenue policy prior to the issue of an Occupation Certificate.

(62) Works as Executed Drawings

Works as Executed plans for approved civil works are to be submitted to Council upon completion of the development **prior to the issue of an Occupation Certificate**. Works as Executed plans are to be in accordance with Council's Engineering Guidelines – Subdivisions and Development Standards.

(63) Maintenance Bond

A Bond Application and a monetary bond is to be submitted to Council to provide a twelve (12) month maintenance period for civil works relating to Council's infrastructure. It is the applicant's responsibility to notify the relevant departments regarding the commencement and finish of the maintenance period and adequate arrangements are to be made regarding any relevant inspections required.

A five percent (5%) bond of the total cost of works is to be submitted to Council for the works that need maintenance **prior to the issue of an Occupation Certificate**.

(64) Extension of Council's Sewer Main

Prior to the issue of an Occupation Certificate, Council's existing sewer main that terminates inside the south-western boundary of 5 Salvanza Crescent is to be extended and a new sewer manhole is to be installed inside the southern corner of the subject allotment. An internal, privately owned sewer line is to be extended from the new sewer manhole to service each proposed unit, a Terminal Maintenance Shaft (TMS) is to be installed at the end of the private sewer main. All works shall be in accordance with the specifications outlined in Council's *Engineering Guidelines – Subdivision and Development Standards* and the *Water Services Association of Australia - Gravity Sewerage Code of Australia WSA 02—2014*.

On-Going Requirements

The following conditions or requirements must be complied with at all times, throughout the use and operation of the development.

(65) Maintenance of Onsite Detention System

The onsite detention system constructed as part of the subject Development Application is to be maintained by the owners of the allotments for the lifetime of the subject development.

(66) Accessible water meter

The water meters servicing the proposed allotment are to be kept free of any obstructions and are to be located outside the fenced area to ensure they are accessible to Council officers at all times.

(67) Manholes to be kept free of obstruction

All existing/proposed sewer manholes are to be kept free of any obstructions so that their positioning and maintenance are easily obtainable.

(68) Ongoing access to site

The following conditions will apply for the lifetime of the subject development:

- a. All internal vehicular manoeuvring aisles, passing bays and parking areas shall be maintained clear of obstruction for the lifetime of the subject development.
- b. All vehicles are required to enter and leave the development in a forward direction to ensure traffic/pedestrian safety.

(69) Access maintenance

The property owner remains responsible for the upkeep and maintenance of the accessway and associated facilities for the lifetime of the proposed development.

(70) Parking maintenance

The property owner remains responsible for the upkeep and maintenance of the carparking, vehicle manoeuvring areas and associated facilities for the lifetime of the proposed development.

12th February 2020

Brett Stonestreet
General Manager
C/- Griffith City Council
1 Benerembah Street
GRIFFITH NSW 2680

Dear Brett,

Re: Development Application 20/2020, Lot 3 DP 1188137, 7-9 Salvanza Crescent, Griffith

I write this letter to express my deep concern for public safety regarding the proposed development at 7-9 Salvanza Crescent, Griffith, and strongly urge council to reconsider granting approval of such development.

The proposed development of seven residences, each consisting of two bedrooms, will undoubtedly increase the number of vehicles occupying this property, potentially 14 x vehicles in total. Apart from the seven garages, the proposed plan does not include any additional parking areas. Without designated off street parking, excess vehicles will be required to park on the narrow-curbed street. The width and dimensions of this street are clearly not capable of accommodating so many stationary vehicles, nor was it originally designed to do so. An increase in stationary vehicles parked on this curb greatly reduces the amount of space provided to successfully manoeuvre through this curb. An increased number of vehicles also reduces the visibility of oncoming traffic. These hazards combined greatly increase the likelihood of accidents involving moving vehicles, pedestrians, cyclists and the many children residing in this neighbourhood. In the interest of public safety, it is paramount to adopt safe principals and risk avoidance to prevent serious incidents, rather than allowing unsafe practices that threaten the lives of the public and its constituents.

Griffith City Council has been instrumental in providing safe environments for its public and other road users. The designated bicycles tracks along Wyangan Avenue are a perfect example of local council implementing well-designed paths for cyclists and pedestrians to safely travel along this busy arterial road. These bicycle tracks are a testament to effective council planning and an acknowledgement by all that public safety should be our greatest concern when considering proposed developments.

Council have an obligation to provide a safe environment for members of the public. Through appropriate design and thoughtful planning, safe environments are achieved. The proposed development at 7- 9 Salvanza Street fails to adequately address the safety of families and children residing in this area, as well as frequent road users, and the general public. As a result, this proposed development is unacceptable should not be granted approval.

Please do not hesitate to contact me for further information. Please also find attached executed Political Donations and Gifts Disclosure Statement.

Regards



Joseph Puntoriero



14th February 2020

Mr Gus Cox
Development Assessment Officer
Griffith City Council
PO BOX 485
GRIFFITH NSW 2681

Dear Mr Cox

**OBJECTION TO DEVELOPMENT APPLICATION NO. 20/2020 (1) PROPOSED
DEVELOPMENT ON LOT 3 DP 1188137 7-9 SALVANZA CRESENT GRIFFITH –
APPLICANT – JZ MANAGEMENT PTY LTD**

I write as a direct property owner in connection with the above planning application. I have examined the plans, and I wish to object strongly to the current proposal of 7 units and strata subdivision at 7-9 Salvanza Cresent.

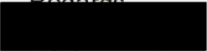
I am concerned that the 7 unit development will impact on the current character of Salvanza Cresent, in particular with the increased proposed density and its potential impacts on increased traffic in the area. In addition, I am concerned about the additional on street parking that may be associated with the 7 unit development.

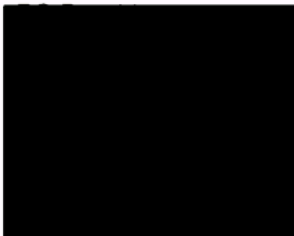
Salvanza Cresent is a family orientated small community with our street used heavily by children riding their bikes in the area. I am concerned that a potential increase in traffic may present an increased conflict and safety concerns for children riding their bikes in the area.

I also purchased in the area, with an expectation that the area would retain its neighbourhood character. This current proposal is a high contrast to the areas neighbourhood character.

While I am not anti-development of these sites, I do not consider that the current number of units is appropriate for the area. I consider that Council should consider a revised application which is more in keeping with the current character of Salvanza Cresent.

Regards


Emanuela Foster



John M Beer

February 14, 2020

Griffith City Council
Attention: Mr. Gus Cox
Development Assessment Officer

Dear Mr. Cox,



Objection to Development Application No. 20/2020 (1) proposed development on Lot 3 DP 1188137 7-9 Salvanza Crescent GRIFFITH – Applicant – JZ Management Pty Ltd.

I wish to object to aspects of Development Application No. 20/2020 (1) proposed development on Lot 3 DP 1188137 7-9 Salvanza Crescent GRIFFITH – Applicant – JZ Management Pty Ltd. The grounds for objection follow.

- The owner of the land that became Salvanza Estate had the developer of Salvanza Estate build up the land along the boundary of Lot 5 DP1188137 and the boundary fence of Lot 10 DP 851401.
- The fence height on Lot 3 DP 1188137 is reduced to approximately 1340cm due to the build-up of soil against the fence of Lot 10 DP 851401
- The fence height on Lot 10 DP 851401 is approximately 1800cm.
- Lot 10 DP 851401 will be overlooked with subsequent loss of privacy & noise from the proposed patio of Unit 7 which will be 1 meter from the boundary.
- The proposed patio will be adjacent to 2 bedrooms of the premises at Lot 10 DP 851401.
- There is an increased risk of intruders during construction & after construction of Unit 7 due to the ease of access afforded by the reduced height of the boundary fence on the development site.
- There is a risk of inundation from Lot 5 DP1188137. During heavy rainfall runoff from Wyangan Avenue has combined with run-off from the packing shed & concrete driveway causing a storm water pit to overflow affecting both Lot 10 DP 851401 & Lot 3 DP 1188137
- This risk of inundation & intrusion could be ameliorated with retaining & fencing similar to that of Lot 59 DP1063408



Dear Mr Stonestreet,
I OBJECT to the above mentioned Development Application for the following reasons;

1 The street frontage, as per the Statement of Environmental Effects, is curved at 16.15 metres. This is at the boundary of the lot. The actual curve frontage is 12 metres. Take away the 6 metre driveway entrance and you're left with 6 metres. This 6 metre space would only be sufficient for one vehicle to park. This must also be considered on garbage and recycle collection day, 14 sulo waste bins need to be put out to be emptied. These sulo bins are 600mm wide and if placed together would take up an area of 8.4 metres. If allowing for 120mm between bins this area end up being 10 metres long. Therefore I am suggesting at half of the bins would end up on the nature strip. This is totally unacceptable. I envisage that if a storage/collection area within the proposed development is not included the bins will be unmanageable.

2 The internal driveway within the development is 6 metres wide. If any of the proposed strata unit holders were to park in front of their single car garage, access to any unit further into the development would be reduced to pedestrian/ bicycle access. This would be of major concern to emergency services. I don't believe Council want to end up being mediators for unhappy unit holders because they allowed this development to happen.

3 Can Council enforce parking restrictions for these unit holders, so they do not park in front of neighbouring properties?

4 The Statement of Environmental Effects provided by the developer is only a summary. Full detail needs to be supplied, so a proper assessment can be made by both Council and any affected neighbour. The developer prepared the Statement of Environmental Effects. I thought it would have at least been a third party. The developer has a pecuniary interest and has not supplied full detailed of all environmental/ social effects.

I appreciate your consideration in this matter. Please do not hesitate to contact me if you require further information.

Regards,
Michael and Julie Keenan





Griffith City Council General Manager
admin@griffith.nsw.gov.au

Proposed 7 unit development and Strata Subdivision dwelling -Urban Subdivision- Strata Title
7-9 Salvanza Crescent Griffith NSW 2680
Lot: 3 DP: 1188137
DA (20/2020.1)

I OBJECT to this application for the below reasons:

- The location of the site on a bend in the road is not suited, we already have a high traffic problem with the amount of cars and the speed they travel when entering Salvanza Crescent. The proposed development has the potential for another 14 vehicles on a daily basis putting added unnecessary vehicle movements throughout the day on an already blind and dangerous corner.
- Not Enough Car spaces to allow for the amount of units intended. If each unit has one visitor and each unit is occupied by 2 cars that is a total of 11 vehicles parked on the bend in the street and in front of neighbouring homes.
- Due to site be overdeveloped there isn't enough room for safe or productive rubbish and recycling pickup services
- The Units directly opposite the proposed development all have double garages , this allow for good traffic flow as cars are off the street at all times.
- Proposed set-back and overall proposed development is not consistent or in line with the existing homes in the subdivision.

Feel free to contact myself if you have any enquiries.

Regards
Daniel Keenan

Daniel & Kristen Keenan



Christos and Shirley Velis

12th February 2020

The General Manager
Griffith City Council
1 Benerembah Street
Griffith NSW 2680



**Re: Development Application No. 20/2020 (1) proposed development on Lot 3 DP 1188137
7-9 Salvanza Crescent Griffith – Applicant – JZ Management Pty Ltd**

We would like to submit our objection in relation to the above development application. We are current owner occupied residents of Salvanza Crescent, and request that the application for this proposed development is rejected for the following reasons:

- Salvanza Crescent is a narrow street and Lot 3 is on the bend which is not suitable for multi-dwelling development which will demand increase traffic access in and out of the property on the narrow bend making it unsafe for road users, including pedestrian traffic
- The proposed development is not consistent with the existing streetscape. Currently all dwellings including units in Salvanza Crescent have a street frontage, this development will see a blank wall frontage with limited landscape and a reduced setback.
- The reduced setback poses a safety concern for entering/exiting traffic and passing traffic due to the narrow nature of the road
- Car parking within the proposed development plans is not adequate. With 7 x 2 bedroom units being single car garage and limited to only 3 visitor parking, it is obvious that this development will demand off street parking. The location of this lot on Salvanza Crescent is not adjacent to a side street to accommodate the overflow of cars therefore all off-street parking will be inappropriately forced on Salvanza Crescent alone. This will cause significant and unsafe congestion due the access of the site being on the bend and Salvanza Crescent being a narrow road.

Thank you for your consideration in rejecting this proposed development.

Regards

Christos and Shirley Velis

13 February 2020

Mr Brett Stonestreet
General Manager
Griffith City Council
PO Box 485
GRIFFITH NSW 2680



Dear Mr Stonestreet,

OBJECTION TO DA 20/2020: PROPOSED DEVELOPMENT AT 7-9 SALVANZA CRESCENT, GRIFFITH

As residents of Salvanza Crescent, we object to the proposed development at 7-9 Salvanza Crescent for a 7 unit development and strata subdivision. Our objection is based on the following:

Insufficient Parking

Proposed development is on a corner block and has limited road frontage. There will be insufficient room for residents and visitor parking as there is only 10 allocated parking spaces including garages (12 are required). We note that the proponent has asked for a concession on parking spaces under the Griffith Housing Strategy. This concession would be adequate for other developments but given the development is on a corner block, with street trees and limited road frontage, it would mean residents and visitors would be parking in front of houses (including ours) on a daily basis.

Safety

Having resided in Salvanza Crescent for over 13 years, we have witnessed numerous near-misses on this corner. The possible addition of extra cars parked in the street means that pedestrians will be forced onto the road and drivers will have to navigate the congested corner.

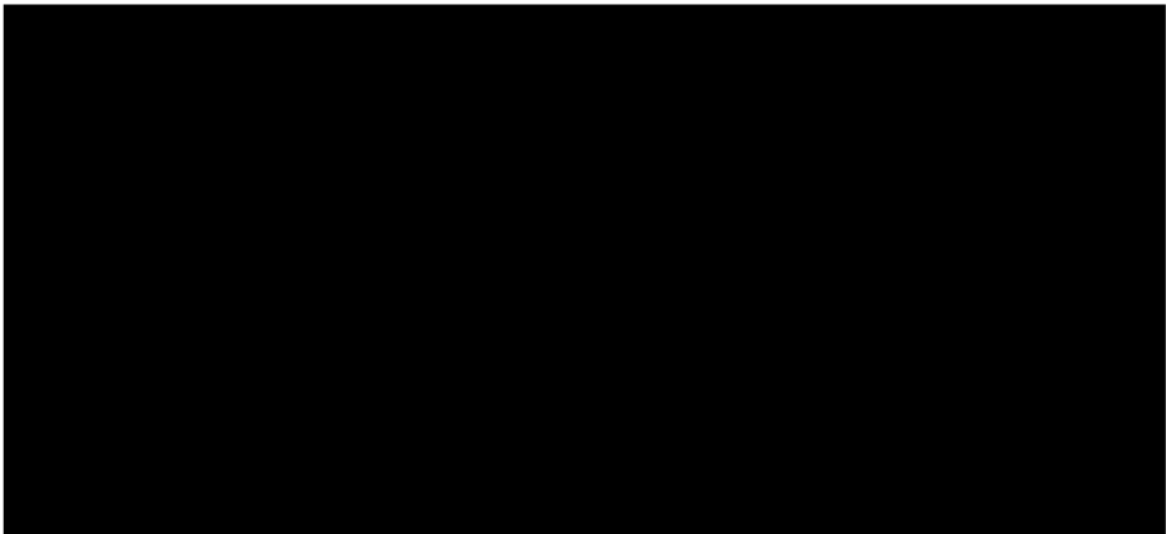
There are a large number of school aged children that reside in the street that walk/scoot/ride daily to the park. We are concerned for their safety with the extra vehicular congestion.

Waste Management

We note that each of the seven units will require a waste and recycling bin. This will mean each fortnight, there will be up to 14 bins on the street and will need to fit in a 10m space. Each bin is 60cm wide and according to Council's Waste Services "Garbage Bin Rules" online, each bin is required to be spaced 1m apart on collection day. **14 bins x 1.6m = 22.4m. The total frontage of the property is 16.15m and the allocated driveway width is 6m.** This is completely unsatisfactory! As you can image, the residents will end up placing their bins onto the kerbside of other houses in the street. With the abundance of additional bins and cars parked in the street, this will cause chaos on waste collection day.

We request that our personal details be withheld from public view.





Attention: The General Manager

Re: **Objection to DA20/2020.1**
7-9 Salvanza Crescent Griffith NSW 2680

Dear Sir,

I am writing to express my objection to the proposed development at 7-9 Salvanza Crescent, for the construction of 7 x units.

Salvanza Crescent is a small residential street, with the majority of the existing dwellings being houses containing young families.

The proposed development is located on a bend in the street, with minimal on street parking, and does not fit the character of the surrounding dwellings.

Major issues with the development include:

- Lack of on-street parking to service 7 x Units
- Insufficient room to house 14 bins for collection (garbage and recycling)
- Street is small, and not suitable for the added traffic movements the development will create
- This high density development is not in keeping with the surrounding dwellings.
 - The only comparable development in Salvanza Estate is at 43 North Grove Drive, which contains only 2 x units – significantly smaller than the proposed development in DA20/2020.1
- Existing dwellings in Salvanza Estate are predominantly houses, all containing families.
- A high density unit complex is not in keeping with surrounding dwellings, or suitable for this location.

Best Regards,

Chris Miller

[Redacted signature block]

11 February 2020

The General Manager
Griffith City Council
PO Box 485
GRIFFITH NSW 2680



Dear Sir,

**Development Application No. 20/2020 (1) proposed development on Lot 3 DP 1188137
7-9 Salvanza Crescent, GRIFFITH – Applicant – JZ Management Pty Ltd**

We, the undersigned, hereby wish to lodge an **OBJECTION** to the proposed abovementioned development application for a proposed 7 unit development and strata subdivision on the subject land. Allowing such development to proceed would make this area less pleasant to live in.

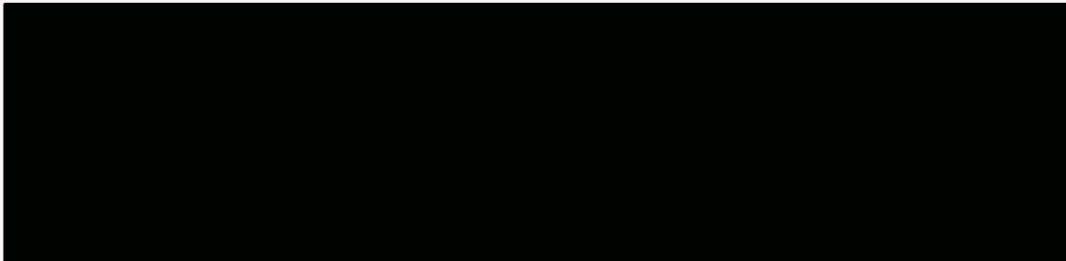
Objections are as under:

1. The current Griffith Housing Strategy presently does not identify Wyangan Precinct as an area for increased densities and does not suggest an appropriate floor space ratio ("FSR") for this area and also does not provide for parking reductions.
2. The proposal for the erection of 7 units does not entirely comply with the Griffith Housing Strategy in that the developer, in order to complete development, requests a number of concessions be given from Development Control Plan 21 ("DCP21"), including but not limited to -
 - a. In respect of parking, the number of car-parking spaces required under DCP21 for 7 units would equate to 12 spaces (rounded). The plans lodged with Council allow for only 10 car-parking spaces – 1 for each unit (7) plus 3 for visitors. The developer requests a concession for only 9 spaces.

This is grossly inadequate as most households have a minimum 2 cars. One car would have to be parked inside the garage and one would need to be parked in front of the garage. This, in itself, would create mayhem and would impact the manoeuvring areas on the site.

Also, the multi-dwelling development would not be suited to this Lot as the location site is on a bend in the road and there would be no space for overflow on-street parking. The road is not wide enough for car-parking on the bend. This, together with dwellings exiting onto a bend, would create traffic havoc with possible accidents/near misses, thus is a safety issue in itself. The road definitely is not wide enough for cars to be parked on either side of the road. Traffic and safety would be impacted.

- b. In regards to landscaping, the developer would like the landscaping area to be reduced, but has not provided a landscaping plan for viewing.
- c. The current development is NOT in keeping with the existing built form of the area. Units in Salvanza estate have been constructed on corner blocks, almost all of which are freestanding, have a double garage, and have street frontage to Salvanza Crescent. The proposal impacts on the streetscape as the primary built form visible from the road is that of a garage wall.
- d. No details on the proposed lighting for the BBQ area are provided. Light spill could greatly impact Lot 59 in DP 1063408 (11 Salvanza Crescent, Griffith).
- e. None of the units have their own private open space which would result in the residents having nowhere other than the common BBQ area to congregate thus neighbouring residents would have the added burden of the noise, smells and disturbance resulting from use. This could be rectified through a reduction in the scale of the development from 7 dwellings to 4 with each dwelling having their own private courtyard, and do away with the BBQ area as this is residential space NOT A PARK.





1 Attachm

ts on Exhibition
x 10/02/2020 07:56 AM



(SD-FO-212) POLITICAL DONATIONS AND GIFTSDISCLOSURE STATEMENT.pdf

Hi Gus,

Please find below our list of objections for the proposed unit development at lot 3 DP 1188137 (7-9 Salvanza Crescent Griffith)

I have also attached a signed Political Donation & Gifts disclosure form.

If you could please reply to this e-mail and confirm the objections have been received and submitted.

If you please don't hesitate to contact me on the below details;

Nam

Ph: (

Addi

th

e-m:

i.com.au

Obje

- The Griffith Housing Strategy does not identify the Wyangan Precinct as an area for increased densities and does not suggest an appropriate FSR for this area and also does not provide parking reductions.
- The Department of Planning has released medium density design guidelines to support increased densities in urban areas but at the same time ensuring development is in keeping with the built form of an area. The proposal would not meet several of the requirements of these guidelines including, landscaped area, principle private open space, setbacks, Floor Space Ratio and view of the development from the street.
- The proposed development is not in keeping with the existing built form of the area. Previously developed multi-dwelling lots have seen a maximum of 4 dwellings constructed, most of which have street frontage to Salvanza Cres.
- The proposal requests a number of concessions from DCP 21, including: landscaping, setbacks and private open space which could be rectified through a reduction in the scale of the development from 7 dwellings to 5.
- The proposal impacts on the streetscape as the primary built form visible from the road is a blank wall of a garage.
- The location of the site on a bend in the road is not suited for multi-dwelling development as there is limited space for overflow on-street parking and the traffic impacts caused by 7 dwellings exiting onto a bend could impact the safety of the road.
- There is limited room for tandem parking behind each garage. It is expected that residents of each unit would have two cars and it would be common for one resident to park in the garage and the other to park just in front of the garage. If this was to occur, it would impact the manoeuvring areas on the site.
- The applicant asks for a reduction in landscaping area, but does not provide a landscape plan.
- The drawings do not provide existing and proposed levels. The site is presently higher than my lot and it is unclear through cut and fill and the construction of raised floor heights, how much the adjacent site will overlook our lot. Also, no details on the proposed height of the retaining wall are provided.
- No details on the proposed lighting for the BBQ area are provided. Light spill could impact our house.

- We did not give any consent for our house plans to be used by the Applicant on the drawings. Our living areas are shown on these plans which will be in the Business Paper to Council and visible on the internet.

From:
Sent:
To: A
Subje

Hi Anthony,
Email is fine as long as it has all of the required information outlined in the notification letter. You also need to complete, scan and email the Political Donation & Gifts disclosure form available at <https://www.griffith.nsw.gov.au/page.asp?f=RES-NUV-83-77-58>

Cheers

Gus



ac

Is an e-mail submission of our concerns

Fr
To:
Da
Su



Hi Gus,
Is an e-mail submission of our concerns accepted or does it have to be a written letter?

Fr
Sen
To:
Sub

Hi
Pl
Gr

-9 Salvanza Crescent,

If you have any additional information, I can be contacted by email.
Cheers

mail.

Gus

(See attached file: 20 6993 DA 20 2020 - Statement of Environmental Effects.PDF)(See attached file: 20 9364 DA 20 2020 - Notification Plans.PDF)

To:
Griffith City Council General Manager
admin@griffith.nsw.gov.au



9th February, 2020

Application Reference

Proposed 7 unit Development & Strata Subdivision Dwelling – Urban Subdivision – Strata Title
7-9 Salvanza Crescent Griffith NSW 2680 (Lot: 3 DP: 1188137)
DA (20/2020.1)



OBJECT to this application for the following reasons:

- **There is not enough car spaces for residents.**
Being 2 bedroom single garage units, the probability of 2 people living in these units is quite high. The access to public transport in this area is minimal which would mean there will most likely be 2 vehicles per unit.
- **Where does the second vehicle reside?** They cannot park in the allocated visitors parking as this will cause the same issue with a visitor vehicle. This would mean they would need to park on the street in front of neighbouring properties.
- **The site is being overdeveloped.**
It's location on a bend along with the encroaching setback with a narrow entry does not allow for safe entry or exit. These issues does not allow for any visitor or owner parking in front of the property which would mean again vehicles would be parked in front of neighbouring properties. This will cause a traffic hazard driving past the property.





- The layout and density of the development has significantly reduced the amount of private open space. With each unit relying on the communal BBQ area, this will increase noise and privacy issues with the adjoining neighbours.
- We already have a high traffic problem in the area because of the amount of existing units in the estate. There are currently 3 units directly opposite the property in question on the corner along with another 3 units on the corner of Northgrove Drive and Salvanza Crescent. All of these units have a double garage.
- This development is not consistent nor compliant with the existing subdivision.
- Units need to accommodate 2 vehicles.

Please do not hesitate to contact us if you require any further information.

Regards
Rodney and Renae Savage



Submission received 8 August 2020 - Read to Council 11 August 2020

8 July 2020

Laura Andreazza & Vincent Musolino

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Councillors
Griffith City Council
1 Benerembah Street
GRIFFITH NSW 2680

Dear Councillors,

**RE: OBJECTION AND SUBMISSIONS: DEVELOPMENT APPLICATION NUMBER 20/2020.1
PREMISES: 7-9 SALVANZA CRESCENT GRIFFITH NSW 2680 (LOT 3/ DP1188137)
PROPOSED 7 UNIT DEVELOPMENT & STRATA DWELLING - URBAN SUBDIVISION – STRATA TITLE**

We refer to the above Development Application (DA) number.

We recently purchased 10 Salvanza Crescent with settlement occurring in late July 2020. Unfortunately, due to the timing of our purchase we have only recently been advised of the abovementioned DA and accordingly, we were unable to lodge a formal objection within the objection period. In any event, we are deeply concerned by the prospect of this development and ask that Council reject the DA as it currently drafted for the following reason:

Traffic

1. The proposed development is located within a quiet, sought after residential area. We understand that property owners such as ourselves were attracted to this area due to the space, peaceful streets and minimal traffic. The park located at the end of the street makes the area suitable for young families and as a young couple intending to reside in Salvanza Crescent for the long term, we considered the area to be a safe, family orientated neighbourhood.

The proposed development is to be situated off a tight bend containing double lines. This creates a significant safety issue as cars will be frequently entering and exiting the complex off a narrow bend. We are therefore greatly concerned that the existence of the 7 units will result in considerably higher traffic throughout the area with the street becoming congested with the overflow of parking from the units.

Relevantly, we note that no traffic report was prepared for this DA. We have not been provided with any explanation from Council as to why this report was apparently unnecessary; however, we do not share this view and instead believe that due to the number of residences and the location of the premises on a bend, the traffic to the area will be significantly altered and should have been better considered.

The location of the proposed development on a bend also poses further concerns for parking and rubbish collection, as outlined below.

Parking

2. As it is currently drafted, the DA suggests that 7, 2 bedroom units will be constructed with only one car space per unit, totalling 12 car spaces including visitor parking. It is our opinion that this is grossly insufficient and we believe the realities of this development have been significantly underestimated. For

example, it is reasonable to assume that the residents attracted to these units will consist of either two individuals residing together as friends/a couple or a young family. Accordingly, it is most probable that a minimum of two working adults will be travelling to and from each unit each day and will require car spaces. Without any visitors to any units, a total of 14 car spaces will be required at any given time meaning that at least two cars will be parked along Salvanza Crescent each night. Given the proposed development is located on a tight bend with double lines, it is most likely that these cars will be parked in front of the homes of other residents on the street, rather than at the front of the proposed development.

If any unit were to have guests, the traffic to the area and the number of cars parked along the street would be significantly increased, disturbing the current peaceful, family orientated street which the residents currently enjoy.

Rubbish collection

3. The frontage of the proposed development is curved and has an approximate length of 16 metres, including the driveway access point. Based upon these measurements and the number of proposed units, it is expected that a total of 14 bins are required to be situated at the front of the premises for the morning of rubbish collection, whilst also leaving space for driveway access. Aside from the fact that this will be aesthetically displeasing, it appears to also create practical concerns for the rubbish and recycling trucks which will be required to park and collect bins which will be located within close proximity of each other.

High density housing

4. The proposed development as it is currently drafted, adopts a high-density housing design allowing approximately 266m² per residence. We understand that Salvanza Crescent was not designed for or intended to be a high density housing area and that other units within the area correctly allow between 360m²-450m² per residence. Accordingly, it is obvious that the development as it is presently drafted does not fit within the intended design of the area.

We understand that members of the developer entity do not themselves intend to reside in the units. While we understand and appreciate their desire to maximise their profits in this development, we do not believe this should occur at the expense of the people who actually reside within the area and who will inevitably be forced to sacrifice their current lifestyle, safety and the peacefulness of the street.

We, along with many other residents in the area, have invested significant funds in securing properties for the establishment of family homes. We carefully selected 10 Slavanza Crescent because of its location and the relatively unique nature of the street in which it is positioned. Salvanza Crescent is presented as one of the more spacious residential areas within close proximity of our vibrant city and we therefore believe that the approval of this DA as it is currently drafted will significantly alter the nature of the street and eliminate the benefits and reasons which attracted us to the area.

Despite our above comments, we note that we would not necessarily object to an amended version of this application which for example, might consist of 3-4, three bedroom units with double car parking (plus visitor spaces). However, for the reasons mentioned above, we request that Council refuse the DA as it is currently drafted.

If you wish to discuss any aspect of the above please do not hesitate to contact us.

Sincerely,
Vincent Musolino and Laura Andreazza

CLAUSE CL02**TITLE Draft Local Strategic Planning Statement****FROM Kelly McNicol, Consultant Planner****TRIM REF 20/78947**

SUMMARY

The Department of Planning, Industry and Environment (the Department) requires each Council to prepare a Local Strategic Planning Statement (LSPS) which sets out the 20-year vision for land-use in the LGA, the special character and values that are to be preserved and how change will be managed in the future. The Griffith LSPS will implement the actions in the Riverina Murray Regional Plan and Council's Community Strategic Plan. It will also shape the land zoning and development controls in the Griffith Local Environmental Plan 2014 (LEP) and inform amendments to the Griffith Land Use Strategy Beyond 2030 (LUS). Essentially, the LSPS will shape all strategic planning documents in Griffith and shape how Griffith will grow in the next 25 years.

RECOMMENDATION

- (a) Council endorse the public exhibition of the draft Local Strategic Planning Statement (LSPS) for a period of 28 days;**
- (b) Should no submissions be received, Council delegates the endorsement of the LSPS to the Director Sustainable Development and to finalise the version to be sent to the Department of Planning, Industry and Environment, including resolving any drafting errors and formatting; and**
- (c) Should Council receive submissions, they be addressed immediately and the revised LSPS returned to an Extraordinary Meeting of Council to be scheduled 29 September 2020.**

REPORT

At the Ordinary Meeting of 28 April 2020, Council endorsed public submissions to be received for a period of 45 days regarding amendments to the existing Griffith Land Use Strategy: Beyond 2030 (LUS) and the Griffith Local Environmental Plan 2014 (LEP) to inform the drafting of the Local Strategic Planning Statement. Council received 36 submissions (see Attachment B Under Separate Cover). Where supported based on sound planning grounds and rationale, the submissions have informed the preparation of the draft LSPS (see submissions review table at Attachment C Under Separate Cover). These submissions will also be further reviewed during the amendment of the LUS and LEP. The submissions table in Attachment C provides a recommendation including a potential pathway for realisation if supported. This may include updates to the LUS or LEP or Council preparing additional strategies or investigations to assess the submission.

The draft LSPS is based around the themes in the Community Strategic Plan and has been informed by the LUS and other Council plans and strategies (CBD Strategy, Entrance Strategy, Playground Strategy, Pedestrian Access and Mobility Strategy etc.).

The timelines for finalising the draft of the LSPS were delayed due to COVID-19 and the extension of the submissions period. Council staff have met with the majority of submitters during and after the exhibition period.

The Department has required the LSPS be endorsed by Council no later than 30 September 2020. The purpose of this report is to seek endorsement to place the draft LSPS on public exhibition commencing 26 August 2020 and ending 23 September 2020.

OPTIONS

OPTION 1

As per the Recommendation.

OPTION 2

Any other resolution of Council.

POLICY IMPLICATIONS

The LSPS will inform amendments to the Land Use Strategy and Local Environmental Plan.

FINANCIAL IMPLICATIONS

Not Applicable

LEGAL/STATUTORY IMPLICATIONS

Not Applicable

ENVIRONMENTAL IMPLICATIONS

Not Applicable

COMMUNITY IMPLICATIONS

Opportunity for interested stakeholders to make a submission.

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item 6.3 Plan strategically and consider land use management to encourage investment in the region.

CONSULTATION

Senior Management Team

Director Sustainable Development

ATTACHMENTS

- (a) Attachment A - Draft Local Strategic Planning Statement (under separate cover) ➡

- (b) Attachment B - LSPS Submissions (under separate cover) [⇒](#)
- (c) Attachment C - Submissions Review Table (under separate cover) [⇒](#)

CLAUSE **CL03**

TITLE **NSW Treasury Corporation (TCorp) Loan Agreement - Griffith Regional Sports Precinct & Griffin Green Housing Project**

FROM **Max Turner, Director Business, Cultural and Financial Services**

TRIM REF **20/78796**

SUMMARY

This report is required to allow for the completion and return of the loan agreement from NSW Treasury Corporation (TCorp) as it requires the use of the Council seal.

RECOMMENDATION

- (a) Council endorse the application of the Council seal onto the Loan Funding Agreement between Griffith City Council and NSW Treasury Corporation for the Griffith Regional Sports Precinct & Griffin Green Housing Projects.**
- (b) The Mayor and General Manager to sign and return the NSW Treasury Corporation Loan Funding Agreement.**

REPORT

Council has been successful in applying for two low interest loans (processed together as one application) for the Griffith Regional Sports Precinct Project (\$10.0M repayable over 20 years at an interest rate of 2.27%) and the Griffin Green Housing Project (\$3.0M over 10 years at an interest rate of 1.53% with a further 50% rebate of the interest component) through the NSW Treasury Corporation (TCorp).

A loan funding agreement has been provided and reviewed and is ready for signature and return to formalise the loan arrangements.

This successful loan funding application will result in Council obtaining a total of \$13.0M in funding to manage Council's cash flows as these projects are developed and come to fruition. The loans have been obtained at extremely attractive interest rates.

OPTIONS

OPTION 1

As per the Recommendation.

OPTION 2

Any other resolution of Council.

POLICY IMPLICATIONS

Not Applicable

FINANCIAL IMPLICATIONS

This loan funding application will enable Council to best manage its cash flows over the development time line of the projects and assist in maintaining Council's strong financial position into the future.

LEGAL/STATUTORY IMPLICATIONS

Not Applicable

ENVIRONMENTAL IMPLICATIONS

Not Applicable

COMMUNITY IMPLICATIONS

The community expects Council to provide strategic infrastructure upgrades when needed and the Griffith Regional Sports Precinct and Griffin Green Housing Projects are both highly visible and socially and economically important initiatives.

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item 2.3 Maximise opportunities to secure external funding for partnerships, projects and programs to improve the quality of life for residents and visitors.

CONSULTATION

Senior Management Team
NSW Treasury Corporation

ATTACHMENTS

Nil

CLAUSE CL04

TITLE Appointment of Councillor to headspace Consortium

FROM Shireen Donaldson, Director Economic & Organisational Development

TRIM REF 20/78089

SUMMARY

Griffith City Council has been member of the **headspace** Consortium since the inception of **headspace**. **headspace** is funded by **headspace** National Youth Mental Health Foundation Ltd. As a condition of funding, **headspace** must establish a one-stop shop model of providing integrated and coordinated services operating under a **headspace** banner.

The Consortium comprises of a number of Service Affiliates who also provide services to young people at risk of developing or showing signs of mental health and / or associated drug and alcohol problems. The objectives of the Consortium are to:

- provide a formal forum through which the **headspace** Griffith consortium can continue to expand and operate
- provide advice and direction for the development and delivery of the Griffith headspace service
- identify gaps in the services system available to young people
- provide a forum that brings multiple agencies together that improves service to young people.

Service Affiliates (i.e. Council) agree to make personnel available to provide client services to **headspace** clients and comply with obligations of a Service Affiliate under a Service Level Agreement (Attachment a).

The **headspace** Consortium Service Level Agreement is now due for renewal and the position of Chairperson of the Consortium has also recently become vacant.

The Manager of **headspace** Griffith has indicated there would be significant value in having a Councillor as the voting member for Griffith City Council on the Consortium and would welcome a Councillor appointment to consider nominating for the role of Chairperson of the Consortium. A Chairperson can be nominated by consortium members with the Lead Agency (**headspace** Griffith) to select the Chair from those nominated.

The Consortium meet every 2 months with the next Meeting scheduled to take place in September 2020 (date to be confirmed).

RECOMMENDATION

- (a) Council appoint Councillor _____ to represent Griffith City Council on the headspace Consortium (and to be administratively supported by Council Community Development staff in this role).
- (b) Council nominate Councillor _____ (as selected above) to stand for the position of Chairperson of the headspace Consortium.

REPORT

The objective of **headspace** is to improve access for young people to mental health and related services and to ensure better coordination between such services by:

- Providing holistic services through **headspace** sites
- Increasing community capacity to identify young people with mental ill-health and related problems as soon as possible
- Encouraging help seeking by young people and their carers
- Providing evidence based quality services delivered by well-trained professionals
- Providing a mechanism for service coordination and integration within communities and at an Australian and State government level.

Council's role as a Service Affiliate on the Consortium is to:

- Advocate for the needs of young people to Council that can be supported at a State and Federal and local with non-government agencies
- Support young people to chair Griffith Youth Committee meetings
- Facilitate access to workshops, programs or projects relevant to **headspace** clients
- Mentor and engage with Aboriginal youth and community
- Participate in **headspace** staff meetings as required
- Contribute to the **headspace** evidence base by contributing to data collection, participating in training and sharing expertise and skills with other practitioners.

OPTIONS

OPTION 1

As per the Recommendation.

OPTION 2

Council choose not to nominate a Councillor to the Consortium.

POLICY IMPLICATIONS

Nil

FINANCIAL IMPLICATIONS

Staff time administration or event management.

LEGAL/STATUTORY IMPLICATIONS

Nil

ENVIRONMENTAL IMPLICATIONS

Nil

COMMUNITY IMPLICATIONS

The Council is a stakeholder in youth mental health services.

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item 2.2 Partner with and provide support to organisations who deliver services and programs locally.

CONSULTATION

Senior Management Team

headspace Griffith Manager

ATTACHMENTS

- (a) headspace Centre Licence and Service Level Agreement (under separate cover) (confidential)

CLAUSE CL05

TITLE Adoption of Amended Model Code of Conduct and Procedures for the Administration of the Model Code of Conduct for Local Councils in NSW

FROM Shireen Donaldson, Director Economic & Organisational Development

TRIM REF 20/78420

SUMMARY

The *Procedures for the Administration of the Model Code of Conduct for Local Councils in NSW* (the Procedures) have been amended in response to the decision by the Supreme Court in the matter of *Cornish v Secretary, Department of Planning, Industry and Environment* [2019] NSWSC 1134.

Amendments have also been made to the *Model Code of Conduct for Local Councils in NSW* (the Model Code of Conduct).

The new Model Code of Conduct and Procedures have been prescribed under the *Local Government (General) Regulation 2005* and accordingly, do not require a public exhibition period.

The new Model Code of Conduct and Procedures take effect immediately. This is because the amendments to the Procedures largely reflect existing practice following the Supreme Court's decision and the amendments to the Model Code of Conduct are minor in nature.

RECOMMENDATION

Council adopt the Model Code of Conduct 2020 and Procedures for the Administration of the Code of Conduct 2020 for Local Councils in NSW based on the prescribed Model Code of Conduct and Procedures.

REPORT

Consistent with the Supreme Court's decision, Councils have the following options when taking disciplinary action against Councillors for breaches of their codes of conduct under the new Procedures:

- that a councillor be formally censured for the breach under section 440G of the *Local Government Act 1993* (the Act), or
- that a councillor be formally censured for a breach under section 440G and the matter referred to OLG for further disciplinary action under the misconduct provisions of the Act.

The process for censuring councillors for breaches of the code of conduct has been significantly strengthened to ensure councillors are made publicly accountable to their electors for their conduct. When censuring councillors, councils are required to specify in their resolution the grounds on which the councillor is being censured by disclosing the investigator's findings and determination and any other grounds that the council considers may be relevant or appropriate.

Councillors may seek to avoid public censure for breaches of the code of conduct by voluntarily agreeing to undergo training or counselling, to apologise for their conduct or to give undertakings not to repeat their conduct before the investigator finalises their report to the council. Investigators can finalise their investigations without a report to the council where they consider these to be an appropriate outcome to the matter they are investigating.

However, it will remain open to investigators to finalise their report and to recommend censure where they consider this is appropriate and warranted. The process for referral by councils of code of conduct breaches by councillors to OLG for further disciplinary action under the misconduct provisions of the Act has been streamlined.

Investigators are required to consult with OLG before recommending the referral of matters to ensure the conduct in question is sufficiently serious to warrant disciplinary action for misconduct and that there is sufficient evidence of the breach to allow OLG to take further disciplinary action.

The Model Code of Conduct has been amended to:

- remove as a breach, failure to comply with a council resolution requiring action in relation to a code of conduct breach (because it is now redundant)
- update the language used to describe the various heads of discrimination in clause 3.6 to reflect more contemporary standards
- include in the definition of council committee and council committee members, members of audit, risk and improvement committees (ARICs) in anticipation of the commencement of the requirement for all councils to appoint an ARIC following the next local government elections.

Amendments have also been made to the Gifts and Benefits provisions of the Model Code of Conduct in response to feedback from some councils. The amendments:

- lift the \$50 cap on the value of gifts that may be accepted to \$100
- clarify that items with a value of \$10 or less are not “gifts or benefits” for the purposes of the Model Code of Conduct and do not need to be disclosed
- clarify that benefits and facilities provided by councils (as opposed to third parties) to staff and councillors are not “gifts or benefits” for the purposes of the Model Code of Conduct, and
- remove the cap on the value of meals and refreshments that may be accepted by council officials in conjunction with the performance of their official duties.

Councils are not obliged to amend their codes of conduct to lift the cap on the value of gifts that may be accepted if they do not wish to. It is open to councils to retain the existing \$50 cap or to impose another cap that is lower than \$100.

Other amendments have been made to the Procedures to:

- allow panels of conduct reviewers to be appointed without a resolution of the council, and
- allow the referral of investigators’ reports to OLG for action under the misconduct provisions of the Act where the council will not have a quorum to deal with the matter.

OPTIONS

As per the Recommendation.

POLICY IMPLICATIONS

Amended Model Code of Conduct & Procedures for Administration.

FINANCIAL IMPLICATIONS

Costs incurred by Code of Conduct Review Panel when conducting investigations. Hourly cost determined during appointment process, but total investigation cost dependant on the complexity of the matter being investigated.

LEGAL/STATUTORY IMPLICATIONS

The new Model Code of Conduct and Procedures have been prescribed under the *Local Government (General) Regulation 2005*

ENVIRONMENTAL IMPLICATIONS

Nil

COMMUNITY IMPLICATIONS

The process for censuring councillors for breaches of the code of conduct has been significantly strengthened to ensure councillors are made publicly accountable to their electors for their conduct. When censuring Councillors, Councils are required to specify in their resolution the grounds on which the councillor is being censured by disclosing the investigator's findings and determination and any other grounds that the council considers may be relevant or appropriate.

Councillors may seek to avoid public censure for breaches of the code of conduct by voluntarily agreeing to undergo training or counselling, to apologise for their conduct or to give undertakings not to repeat their conduct before the investigator finalises their report to the council. Investigators can finalise their investigations without a report to the council where they consider these to be an appropriate outcome to the matter they are investigating. It will remain open to investigators to finalise their report and to recommend censure where they consider this is appropriate and warranted.

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item 1.1 Provide clear and transparent communication to the community and 3.1 Undertake Council activities within a clear framework of strategic planning, policies, procedures and service standards.

CONSULTATION

Senior Management Team

Office of Local Government

ATTACHMENTS

- (a) Office of Local Government Circular 20-32 (under separate cover) [!\[\]\(c8dce68b26731c7aa5915072fc9d68dd_img.jpg\)](#)
- (b) Model Code of Conduct 2020 (under separate cover) [!\[\]\(76b3245de86167eba9fcdc9cc9f32aa4_img.jpg\)](#)
- (c) Procedures for the Administration of the Model Code of Conduct (under separate cover) [!\[\]\(13db7587f50867332e5bedc6a161739d_img.jpg\)](#)

CLAUSE CL06

TITLE Delivery Program Progress Report - 30 June 2020

FROM Shireen Donaldson, Director Economic & Organisational Development

TRIM REF 20/75584

SUMMARY

Section 404(5) of the Local Government Act 1993 requires that regular progress reports are provided to Council, reporting as to its progress with respect to the principal activities detailed in its Delivery Program at least every six months.

RECOMMENDATION

Council note the Delivery Program Progress Report as at 30 June 2020.

REPORT

Council's Integrated Planning and Reporting Framework is based on a long term Community Strategic Plan which sets out the community's vision and the directions that Council needs to pursue to help achieve this vision. Complementing the Community Strategic Plan is a four year Delivery Program and a one year Operational Plan (Budget).

The Delivery Program is the commitment from Council, over a four year term, of what is going to be delivered to progress Council and the community towards the directions set out in the Community Strategic Plan. The one year Operational Plan sets out the actions being undertaken, in a particular year, to progress what the Delivery Program is to deliver.

This report and the attached performance measures (Attachment A) provide a summary of Council's progress in relation to the actions from the Delivery Program & Operational Plan as at 30 June 2020.

A summary of the significant projects completed/underway include:

Project	Progress	Expected Completion/ Comments
Griffith Southern Industrial Link Road		
○ Kidman Way/Bromley Road Intersection	Underway	Dec. Qtr 2020
○ Bromley Road	Underway	Jun. Qtr 2020
○ Thorne Road West	Delayed	Project delayed due to dispute with land owner.
Griffith CBD Upgrade Program		
○ Yambil Street Stage One	Complete	
○ Yambil Street Stage Two	Underway	Sept. Qtr 2020
○ Yambil Street Stage Three	Underway	Tender and Drawings specifications complete.
New Cemetery Masterplan Development	Underway	Masterplan prepared.
Boorga Road/Dickie Road sealing	Planning	Grant Application submitted under

Project	Progress	Expected Completion/ Comments
project	underway	Fixing Local Roads successful.
Griffith Regional Sports Precinct		
○ 50m pool - Design and construction	Underway	Mar. Qtr 2021
○ Westend Oval – Design and construction	Underway	Dec. Qtr 2021
Village Footpath Project Stronger Country Communities Program Rd. 1	Complete	
Hanwood Cycleway	Underway	Jan. Qtr 2021
Memorial Park Community Stage and Amenities Block Upgrade Stronger Country Communities Program Rd. 1	Complete	
City Park Toilets Stronger Country Communities Program Rd. 2	Underway	Quote accepted.
Community Stage Burley Griffin Community Gardens Stronger Country Communities Program Rd. 2	Underway	Works commencing September 2020.
Lake Wyangan and Catchment Rehabilitation Strategy North Lake Pipe	Complete	
Lake Wyangan and Catchment Rehabilitation Strategy Sedimentation Ponds and Wetland North Lake	Underway	Works delayed due to unearthing of Aboriginal Artefacts. Permit required. Mar. Qtr 2021.
Library Multipurpose Room	Complete	
Jubilee Oval New Cricket Nets NSW Cricket Grant	Complete	
Jubilee Oval Amenities Building Stronger Country Communities Rd. 2	Underway	Dec. Qtr 2020
Regional Theatre Redevelopment	Complete	Jun. Qtr 2020
Enticknap Park Upgrade	Complete	Opened August 2019
Affordable Housing Strategy	Complete	Strategy adopted Nov 2019. Land in Wakaden Street gifted to Argyle Community Housing Ltd to build 4 new units.
Griffith Housing Strategy Pioneer Precinct Project BBRF Round 4	Underway	Negotiations and planning commenced.
Griffith Youth and Community Centre	Underway	Tender being negotiated with scope reviewed – Mar. Qtr 2021.
Western Country Universities Centre	Complete	Centre officially opened in Kooyoo Street Nov 2019. Part of above project – Griffith Youth and Community Centre.
New Depot and Admin Fibre Optic	Complete	Jun. Qtr 2020

Project	Progress	Expected Completion/ Comments
Henderson Oval	Underway	Funding secured, draft concept plan options have been prepared. Complete Mar. Qtr 2021.
Griffith (Olympic Street) BMX & Scooter (Pump) Track & Facilities SCCF Round 3	Underway	Preliminary draft designs commenced.
CCTV and lights at the Skate Park and Yambil Street and Banna Ave	Underway	Safer Communities Program funding secured, master plan prepared.
Parks and Gardens Depot Relocation to Jensen Road	Underway	Design completed, tender open Sept. Qtr 2020. Construct first half 2021.
Railway Street Carpark	Planning commenced	Local Roads and Community Infrastructure Program Funding secured, design being prepared, construct by Jun. Qtr 2021.
Merrigal Street Pedestrian Bridge	Planning commenced	Local Roads and Community Infrastructure Program Funding secured, design being prepared, construct by Jun. Qtr 2021.
Bright Lights on Banna	Underway	Local Roads and Community Infrastructure Program Funding secured, design being prepared, commence Stage 1 Dec. Qtr 2020, complete by Jun. Qtr 2021.
Toilet Block Yenda Cemetery	Completed	June 2020
Kooyoo Street Street Scape Place Making Shared Spaces	Planning commenced	Under application
Tharbogang Waste Management Centre		
○ Prepare Quarry Floors for Development	Ongoing	No movement due to no gravel extraction being undertaken.
○ Existing Landfill Restoration	Ongoing	Money has been used for the reinstatement of the drainage network that takes the water away from the Landfill.
○ Fibre Optic Cabling - Weighbridge to Site Office	Underway	Dec. Qtr 2020
Power Upgrade – Jensen Road Depot	Complete	Jun. Qtr 2020
Griffith 14ML Reservoir Refurbish	Underway	Dec. Qtr 2020
New Telecommunications Tower	Underway	Mar. Qtr 2021
Potable Trunk Main Renewals	Underway	Dec. Qtr 2021
Raw Mains Renewals Schwabb, Pigott/Golf Course Roads	Underway	Dec. Qtr 2021
Annual Road Reseals and Maintenance Program	Urban reseal – 98% complete Rural reseal	Mar. Qtr 2020

Project	Progress	Expected Completion/ Comments
	– Complete Regional reseal - Underway	
Upgrade Livestock Saleyards (Truck Wash)	Underway	Complete Sept. Qtr 2020
Flood Mitigation		
○ East Mirrool Regulator automation design plus breaching protocols	Complete	Oct 2019
○ Yoogali Levee upgrade	Underway	
Drainage Development Collina	Complete	Complete Mar. Qtr 2020
Upgrade sand filters – Griffith Water Treatment Plant	Underway	Dec. Qtr 2020
Rose Garden	Deferred – budget consideration	Landscape design options to be reviewed – Subject to 2021/2022 budget consideration.

ORGANISATIONAL STRUCTURE AMENDMENTS

The following amendments have been made to the Organisational Structure.

Previous Position	Type of Change	New Position	Reason for Change	Directorate
Inspection Officer – Pools & Drainage	Position Change	Trainee Building Surveyor	Build internal capacity for building certification functions	Sustainable Development
Grants Officer / Accountant	Position name and position description	Corporate Accountant / Grants Coordinator	Better reflect the role and responsibilities	Business, Cultural & Financial Services
Compliance	Merge Departments	Environmental Health & Compliance	Better meet organisational needs	Sustainable Development
Compliance Coordinator	Position name and position description	Environmental health & Compliance Coordinator	Better meet organisational needs, Coordinate new Environmental Health & Compliance department	Sustainable Development
Environmental Health & Sustainability Coordinator	Remove from Structure, move FTE to Principle Officer Environment	Position redundant	Better meet organisational needs	Sustainable Development
Principle Officer Environment	FTE from Environmental Health & Sustainability	New position	Better meet organisational needs	Sustainable Development

Previous Position	Type of Change	New Position	Reason for Change	Directorate
	Coordinator			
Sustainable Development Administration Officer	New position 0.6 FTE from Environmental Planner position, Additional 0.4 FTE	New position	Better meet organisational needs	Sustainable Development
Environmental Planner	Remove from Structure add 0.6 FTE to Sustainable Development Administration Officer	Position redundant (currently vacant)	Better meet organisational needs	Sustainable Development
Environmental Health Officers	Reporting Line	Report from Environmental Health & Sustainability Coordinator to Environmental Health & Compliance Coordinator	Better meet organisational needs	Sustainable Development
Public Health Officer	Reporting Line	Report from Environmental Health & Sustainability Coordinator to Environmental Health & Compliance Coordinator	Better meet organisational needs	Sustainable Development
Sustainable Development Administrator	Position name and position description	Development & Building Administrator	Better reflect position responsibilities	Sustainable Development
Technical Support Officer	Position name and position description	Technical Administration Officer	Better reflect position responsibilities	Sustainable Development
Workforce Planning Administrator – Training & Development	Position name and position description	Workforce Planning Administrator – Learning & Development	Better reflect position responsibilities	Economic & Organisational Development
Airport (Department)	Report change from Director Infrastructure and Operations	Reports to Director Sustainable Development	Better meet organisational needs	Sustainable Development
Airport Coordinator	Position Name and Position description	Airport Facility Coordinator	Better meet organisational needs	Sustainable Development

Full Time Equivalent (FTE), as per organisational structure

Date	FTE (permanent, casual & trainees)
30/6/2019	288
30/9/2019	288
31/12/2019	290
31/3/2020	290
30/6/2020	290

OPTIONS

Not Applicable

POLICY IMPLICATIONS

Not Applicable

FINANCIAL IMPLICATIONS

As per budget allocations set out in the 2019/20 Operational Plan.

LEGAL/STATUTORY IMPLICATIONS

In accordance with the Local Government Act 1993 Section 404.

ENVIRONMENTAL IMPLICATIONS

Whilst this report has no direct environmental implications, it does summarise Council's activities. Some of the objectives achieved have had a positive impact on environmental issues within the Local Government Area.

COMMUNITY IMPLICATIONS

Council has an obligation to provide progress reports to the Community advising the extent to which Council has achieved its goals as set out in the Delivery Program.

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item C5 - To provide a governance role in the continuous development of the City of Griffith.

CONSULTATION

Senior Management Team

ATTACHMENTS

- (a) Quarterly Review Report - Delivery Program & Operational Plan Actions - Q4, 2019/2020 (under separate cover) ➡

CLAUSE CL07**TITLE** Minutes of the Christmas Working Group Meeting**FROM** Shireen Donaldson, Director Economic & Organisational Development**TRIM REF** 20/75853

SUMMARY

The Minutes of the Christmas Working Group are reported to the Cultural Facilities Committee. However, due to COVID-19 the next Cultural Facilities Committee has been cancelled. The Minutes of the meeting held Wednesday, 5 August 2020 are attached for Council's consideration and adoption.

RECOMMENDATION

The recommendations as detailed in the Minutes of the Christmas Working Group meeting held on 5 August 2020 be adopted.

REPORT

Minutes of the Christmas Working Group are attached for Council's consideration.

OPTIONS

Nil

POLICY IMPLICATIONS

Nil

FINANCIAL IMPLICATIONS

Nil

LEGAL/STATUTORY IMPLICATIONS

Nil

ENVIRONMENTAL IMPLICATIONS

Nil

COMMUNITY IMPLICATIONS

The community has an expectation that Council assists with promotion and organisation of events, street & tree decorations, festive atmosphere, during the Christmas/New Year season.

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item 2.2 Partner with and provide support to organisations who deliver services and programs locally.

CONSULTATION

Senior Management Team

ATTACHMENTS

- (a) Draft Minutes - Christmas Working Group - 5 August 2020 [↓](#)

74

**CHRISTMAS WORKING GROUP
HELD IN THE COUNCIL CHAMBERS, GRIFFITH ON
WEDNESDAY, 5 AUGUST 2020 COMMENCING AT 5.34 PM**

PRESENT

Councillor Dino Zappacosta (Chair), Councillor Eddy Mardon, Councillor Rina Mercuri, Pamela Gulloni (Community Representative), Denny Fachin (Community Representative)

STAFF

Director Economic and Organisational Development, Shireen Donaldson; Parks and Gardens Overseer, Jemaile Irvine and Minute Taker, Leanne Austin.

1 APOLOGIES

RECOMMENDED on the motion of Denny Fachin and Councillor Rina Mercuri that apologies be received from Project Planner, Nathan Beer, Julie Andreazza (Community Representative), Louis Dal Nevo (Community Representative), Vanessa Bugno (Community Representative), Vanessa Gugliemino (Community Representative), M'liss Jones (Community Representative) and Manager Parks & Gardens, Peter Craig.

2 CONFIRMATION OF MINUTES

RECOMMENDED on the motion of Denny Fachin and Councillor Eddy Mardon that the Minutes of the previous meeting held on 13 November 2019, having first been circulated amongst all members, be accepted.

3 BUSINESS ARISING

3.1 Christmas 2019

Mrs Donaldson advised last year's budget was slightly over by around \$5,000. Councillor Mercuri advised that the trees and park looked amazing with lots of people taking photos. Mr Fachin agreed that it was very successful and the Carols by Candlelight event was also well attended. Councillor Zappacosta commented that the Working Group achieved a great outcome lighting up the two street trees in Banna Avenue and the decorations in Memorial Park. Mrs Donaldson advised all the Christmas decorations are being stored together at the Council hangar at the Airport. Councillor Zappacosta noted his appreciation of donations for decorations from businesses and advised the Multicultural event was also successful and the stage worked well.

4 DECLARATIONS OF INTEREST

Pecuniary Interests

There were no pecuniary interests declared.

Significant Non-Pecuniary Interests

There were no non-pecuniary interests declared.

Less Than Significant Non-Pecuniary Interests

There were no less than significant non-pecuniary interests declared.

5 ITEMS OF BUSINESS

5.1 Planning for Christmas 2020

Carols by Candlelight

The Working Group discussed considerations regarding Covid-19. It may be possible to livestream Carols by Candlelight as a virtual concert if unable to attend in person due to Covid-19 restrictions. If the event proceeds it may need to be a free ticketed event with limited numbers and sufficient spacing provided. Carols by Candlelight to go ahead Saturday 12th December. Need to book the park and stage. Councillor Mardon suggested Council liaise with the Multicultural Committee regarding a Carols event also.

Lighting of the Christmas Tree

The Rotary Carnival will possibly be held 27 November and will incorporate the lighting of the Christmas tree.

Santa Claus

Mr Dal Nevo relayed prior to the meeting that he was very happy with the Christmas Carols and Christmas 2019 events. Santa Claus to continue down the street for 2020. If Carols can't go ahead, Santa might be able to go down the street with elves. Need to clarify dates Santa is required and cost.

Music in Banna Avenue

Music to be broadcast. Possibly use the same soundtrack as last year.

Street Banners and Flags

Christmas banners and flags to be erected. Mrs Donaldson is to check on the condition of the banners and flags.

Fairy Lights in Trees

Councillor Zappacosta asked if the timing of the fairy lights in the Banna Avenue street trees could be checked.

Lighting up of Residential Areas

Residents to be encouraged to light up their houses with the Mayor's choice of best lit up house to be held again this year. Mrs Donaldson advised buses may not be able to run due to Covid-19.

Business Shop Front Decorations

Businesses to be encouraged to decorate shop fronts. Businesses will be promoted on social media and Council Catchup. Christmas Star sticker system was used to promote local businesses last year.

5.2 Expenditure of Grant Funding – Local Roads and Community Infrastructure

Mrs Donaldson advised that Council had been successful in receiving \$340,000 for the Bright Lights on Banna project through the Local Roads and Community Infrastructure grant.

Councillor Zappacosta stated that he was proud of the achievements of this Working Group in driving the Bright Lights on Banna project, undertaking community consultation and having the project ready to apply for grant funding.

Mrs Donaldson presented the 2020 design proposal which includes 3 new PGB up-lights at pedestrian crossings, 10 additional fairy light trees in Banna Avenue, 23 shooting stars, a new giant walk through bauble with LED lights, Archway, new Christmas tree with LED lighting and 2 Photo booths.

The Working Group discussed the locations of the fairy light trees in Banna Avenue. As there may be issues with power some areas may need additional preparation.

Mrs Donaldson is to discuss with Mr Beer what locations can be delivered quickest and members will be advised. Working Group members agreed that the order of trees completed should be done to assure a balanced, symmetrical outcome for the main street.

Mrs Donaldson advised a new giant bauble to complement the arch has been ordered along with new Christmas trees (outdoor) and decorations for Yenda and Memorial Park.

RECOMMENDED on the motion of Deny Fachin and Pamela Gulloni that the funds be expended as per the 2020 Design Proposal attached to the report.

Mrs Donaldson is to investigate when and where the shipping container is being delivered to.

6 GENERAL BUSINESS

Nil

7 NEXT MEETING

The next meeting of the Christmas Working Group will be held on Wednesday 2 September at 5:30 pm in the Council Chambers.

There being no further business the meeting closed at 6:31 pm.

Confirmed:

CHAIRPERSON

**LAKE WYANGAN & CATCHMENT MANAGEMENT COMMITTEE
HELD IN THE COUNCIL CHAMBERS, TUESDAY, 4 AUGUST 2020
COMMENCING AT 5:08 PM**

PRESENT

Councillor John Dal Broi (Chair), Councillor Doug Curran, Councillor Anne Napoli (Zoom), Councillor Brian Simpson (Zoom), Paul Eldridge (Community Representative), Anthony Kidman (Community Representative), John McFadzean (Community Representative), Kelvin Williams (Community Representative), Mark Vitucci (Community Representative) (Zoom), Mat Ryan (Aquna Sustainable Murray Cod), Stephen Young (Griffith Local Aboriginal Land Council) and Vickie Simpson (Griffith Local Aboriginal Land Council)

Quorum = 3

STAFF

General Manager, Brett Stonestreet, Director Sustainable Development, Phil Harding, Lake Wyangan & Catchment Management Project Officer, Thomas Mackerras, Director Utilities, Graham Gordon, Principal Planner Urban Design & Strategic Planning, Peter Badenhorst, Minute Taker, Leanne Austin

The Mayor welcomed Stephen Young and Vickie Simpson from Griffith Local Aboriginal Land Council, Mat Ryan from Aquna Sustainable Murray Cod and newly appointed Lake Wyangan & Catchment Management Project Officer, (former Committee member) Tom Mackerras.

1 APOLOGIES

RECOMMENDED on the motion of Councillor Doug Curran and John McFadzean that an apology be received from Karen Hutchinson (Murrumbidgee Irrigation).

2 CONFIRMATION OF MINUTES

RECOMMENDED on the motion of Councillor Anne Napoli and Councillor Brian Simpson that the minutes of the previous meeting held on 8 July 2020, having first been circulated amongst all members, be confirmed.

3 BUSINESS ARISING

Councillor Simpson enquired if NSW Fisheries had been contacted regarding assessment of the fish population in the Lake. Mr Harding advised a quote had been received and this would be discussed in more detail later in the meeting.

4 DECLARATIONS OF INTEREST

Pecuniary Interests

There were no pecuniary interests declared.

Significant Non-Pecuniary Interests

There were no significant non-pecuniary interests declared.

Less Than Significant Non-Pecuniary Interests

There were no significant non-pecuniary interests declared.

5 ITEMS OF BUSINESS

CL01 FISH KILL UPDATE

The Mayor advised members of the Committee had previously received a report regarding the Lake Wyangan fish kill prepared by Darren Baldwin (Rivers & Wetlands). The Environment Protection Authority (EPA) has completed its investigation into this matter which included a review undertaken by NSW Department Planning, Industry and Environment regarding the fish kill. This was emailed out to Committee members earlier in the day. The report stated that there was limited data on the water quality in the lake prior to the fish kill therefore there was no conclusive evidence to reliably identify a single factor as the cause of the fish kill. It was unlikely the fish kill was the result of low dissolved oxygen in the water or that the fish kill was caused by pesticides or other organic contaminants. There was no conclusive evidence the fish kill was caused by metals or ammonia. The report stated that it was not unusual for fish kills to be the result of several factors acting together and this may be the case for this particular incident. The report recommended ongoing monitoring of pH, ammonia and metal concentrations be undertaken to assess the ongoing risk of these contaminants. Council will continue working with the EPA in relation to this matter.

Mr Harding provided an update on the unearthing of Aboriginal artefacts at Lake Wyangan in late May 2020 when a track was graded adjacent to the eastern shoreline to undertake clean-up work. The EPA and Department of Heritage have been notified and remediation work is required to be carried out. Council will apply for Aboriginal Heritage Impact Permits (AHIP) for the works to be undertaken at the Lake which may result in an 8 month delay to the wetlands project. This has outlined the area is a culturally sensitive area and Council will be working closely with the Aboriginal community moving forward.

CL02 LAKE WYANGAN PROJECT OFFICER PROGRESS REPORT

Mr Mackerras provided an update to the Committee advising he had commenced the role of Lake Wyangan Project Officer two weeks ago.

Water test results and graphs were provided to the Committee including total biovolume (Amber level), potentially toxic BV, Nitrogen, Phosphorus, salinity and water levels. Pond weed is starting to re-grow around the shores of the lake and may need to be harvested.

Councillor Curran enquired when Council would be putting in an allocation of water as previously recommended. Mr Harding advised this would be discussed later in the meeting.

A quote has been received from Dr Fish Contracting regarding assessment of fish species in Lake Wyangan North. Assessment will be done using Fyke nets to allow fish to swim into the nets, fish captured will be assessed and released. Mr Eldridge asked if accurate recordings

could be achieved given that fish are less mobile in cooler weather and there is not much water flow currently. Mr Mackerras responded that the contractor would take readings over two nights to ensure accuracy of the data. The Committee discussed the timing of adding water to the Lake to coincide with the fish assessment to assist with the process.

Council is communicating with Phoslock Environmental Technologies about options for treatment of the existing load of Phosphorous in the water column sediments which may assist in the reduction of growth of harmful algae. Council will provide required data and a proposal will be prepared.

Mr Mackerras advised the Water Quality Buoys had been removed from the Lake and returned to the manufacturer for servicing and maintenance. Solar panels have been upgraded and leaks sealed. Council has requested an option to include salinity probe for continuous monitoring.

Catchment monitoring has been proceeding at the five locations recording flow data. Manual water samples are being obtained at the Recreation area NW drain.

A budget overview was provided to the Committee.

Mr Stonestreet commented about the benefits of the Phoslock system, given that it is expensive and requires high water flow to be effective. It may be warranted that Phoslock be installed in areas where water is coming in to the Lake system.

CL03 WETLANDS PROJECT UPDATE AND NEXT STEPS

Mr Harding provided an update on the project advising that construction is currently on hold pending further investigation due to the discovery of Aboriginal artefacts in the area.

Mr Peter Bacon joined the meeting the time being 5:32 pm and provided the following information:

- Woodlots and Wetlands were the successful tenderers for the project.
- Aboriginal artefacts were located in May 2020. This has allowed for re-design of the proposed project prior to commencement of works so as to minimise risk / damage to the artefacts.
- Key values of the Lake area are recreation, education and now cultural importance of the site. The findings have emphasised the cultural value of this site.
- Important to eliminate the risk of uncovering human remains.
- On the Eastern side of the Lake there appears to have been a lot of activity between the water and sand near the Lake shore.
- Preference is to locate the wetlands at the Northern end of the Lake as the Northwest channel is relatively contaminated.
- Re-design may require moving proposed site back from the Lake 100 metres, so that the wetlands can be located where the sandy soil is less than 0.3 m.
- Eastern side where there are a lot of artefacts, option to pull back 100 – 200 m towards dune area. This may be the lowest risk design due to clay soils.
- This is all subject to approvals by relevant agencies being provided.
- At least 10 ha of land available with the amended design.
- It is a valuable important cultural site – recognise in design, education aspects, increased focus on indigenous aspect.

Councillor Simpson requested a copy of the presentation be provided to Committee members.

Mr Young advised there is a significant burial site in the Pelican Shore area as well as possible Scar Trees located nearby. From the Aboriginal community's perspective any opportunity to reconnect, to find a sense of belonging and connection to the land would be beneficial. The Lake provides this opportunity and the Aboriginal community are looking to working with the Committee to develop this connection. There may be possibilities for funding for the development of an Aboriginal tourism/heritage tourism group. This is a positive step forward and would promote connection to culture and education opportunities.

The Mayor reiterated that we must respect the Aboriginal cultural significance of the site.

Mr Stonestreet referred to the alternative proposal which may be located in a low risk area for Aboriginal artefacts with studies to be completed. Mr Stonestreet commented that the total area available for wetlands would increase from 5 ha to 10 ha in the re-design. Mr Bacon noted that there may be more activity away from the water and this would be taken on notice. Mr Bacon confirmed that the wetland would be best located in the Northern area to treat the contaminated water run off. On the Eastern side the aim is to be around 100-200 metres away from the site. A risk assessment will be prepared by an archaeologist.

Mr Bacon continued with his presentation.

- Colour of lake emphasises the presence of algal bloom.
- Northwest channel carries contaminated drainage water therefore it would be beneficial to use the area to North of the lake to create wetlands.
- Lake is manmade with the site being a gypsum quarry until the mid -1950's.
- The Lake is currently closed for recreational use.
- For really effective wetlands the aim is to treat 1% of catchment area. Design should be 75 ha. We have a minimum of 5 ha.
- Design will maximise removal of key contaminants ie suspended solids and Phosphorus. No salt removed in this system.
- Original design was to address recreation, social, excess water management, education and now includes significant cultural values.
- It is likely the lake foreshore has large number of artefacts as well as other nearby areas. Burial more likely to occur in soft sandy soil than clay areas.
- Options include:
 - abandon the project,
 - move the treatment area into the Lake to create wetland. Problem isolating area, very expensive and difficult.
 - plough ahead, stick with design as is, and (hopefully) get approval.
 - adapt the treatment area and construction design to achieve risk minimisation and (hopefully) get approval.
- Minimise the disturbance by:
 - Keeping any soil disturbance to the necessary minimum.
 - Keeping any disturbance as far away from the Lake as possible.
 - Keeping construction on clay.
 - Adapting design to minimise impact risk option.
- Reduce risk by pulling back construction from the Lake shoreline and only installing the Northern wetland cells where the sandy topsoil is <0.3m.
- Eastern area – pull design down to the south towards Campbell Swamp on clay soil.
- Design to include:
 - Visitor access (safety issue).
 - Indigenous heritage (increase emphasis).
 - Special interest groups e.g birdwatching.
 - Vegetation array
 - Educational e.g. Signage, story boards, study centre, gravity and solar power.

- The Lake has been receiving nutrients for 65 years with approximately 2 year residence time. Therefore it will take time to achieve water quality improvement.
- The proposed system will not reduce salinity.

Shireen Donaldson entered the meeting the time being 6:15 pm.

Councillor Curran enquired if the re-design would satisfy the ability to develop a significant site for tourism and cultural purposes?

Mr Young advised that the community needs to be educated around cultural awareness so visitors to the site don't interfere with any sacred areas. It is an essential public place and the Aboriginal community wants to move forward and promote the connection for the Aboriginal community.

Mr Bacon advised he would be guided by the Aboriginal community and take their feedback into consideration with the design to meet the cultural concerns. The access track is important but needs to be implemented in a culturally respectful way. The design needs to discourage illegal collection of artefacts.

Councillor Curran enquired if the redesign could occur within the 8 month approval process?

Mr Harding advised Mr Bacon will proceed with the re-design in consultation with an archaeologist and the Aboriginal community.

The meeting was suspended at 6:26 pm and reconvened at 6:50 pm.

CL04 BRAIN STORMING SESSION: LONG TERM APPROACH TO IMPROVING AND MANAGING CATCHMENT WATER QUALITY

The Committee workshopped areas of concern with the following points discussed:

- Issue of salt levels.
- Will the addition of water fix the problem in future?
- Less water going in – recordings are more concentrated.
- Gradual increase in salinity over the years.
- Maintain quality of water going down Lakeview Branch Canal.
- To what extent do we control water in the Lake – need to talk to MI/customers.
- Difficult to solve long term.
- Difficulty getting fresh water in.
- Tharbogang Swamp option – requires engineering/studies.
- Let current water levels evaporate, remove salt and sediment then start again with fresh water.
- Can we afford the Lake?
- Water would need to be purchased resulting in less income for the community. Need to consider ongoing costs.
- Need to put it out to the community.
- Option to do a section of the Lake at a time. Work with MI. Increase depth, decrease size?
- Recreational/social uses – salt levels may be ok? Fish may handle salt levels. Increase water levels?
- Aboriginal community water rights – due to the cultural significance may be able to obtain funding and support from Government.
- Salt will increasingly get worse - fish will die, closed system, issues with gypsum mine and irrigation water, sediments potentially toxic, leads to deoxygenation and acidic events. Lake is in poor condition.

- Need to break cycle - remove sediment. Water needs to get pumped out, sediment is an issue, fresh water needs to be shandied in.
- Residual gypsum in system. Scouring system won't solve problem. Need to make a decision about the value of the Lake to community.
- Farms draining into Lake Wyangan – look into the legality of drainage. MI changed rules to allow some farmers to drain water. Need to look at rights to drain in some farming areas – should be returned to original state.
- Stormwater may be different issue.
- Long term – community needs to make decision – what is the cost?
- Council's financial position – there has been no special rate variation in the past. May be an option?
- Costs \$3M to keep filling the Lake annually – is this dead money?
- If we dredge and clean out, what is the ongoing cost/outcome?
- Engineering solutions – look at Tharbogang Swamp.
- Cultural Water availability may assist with Lake issues.
- Discussions with MI – set up a MoU – how the Lake is to be managed.
- Consult with Aboriginal community.
- Series of options to be developed and presented to the next meeting.
- Look at the next few months while waiting for options. There are 1,500 megs water programmed to go in this year and 400 megs remaining from last year.

RECOMMENDED on the motion of Councillors Doug Curran and Brian Simpson that 400 megs water remaining from last year's allocation be put into the Lake within the next two months.

- Water is to be added slowly so as to not disturb sediments – trickle in.
- Water allocation may assist with fish assessment if timing coincides.
- Need to consider works programmed by MI.
- Advocacy with Government departments regarding cultural water – look into this further.
- Report from April 2017 provided by Water Technology recommended long term staff position not just a term appointment. This is to be reviewed by Senior Management Team.
- Need to annually review potential for external funding sources in relation to the Lake – may not need rate variation.
- Pilot project for macrophytes – this has not been looked at yet.
- Land management practices – Council needs to look at further.
- Targeted Carp removal in hotspots.

6 GENERAL BUSINESS

6.1 Resignation of Thomas Mackerras

The Mayor advised Mr Mackerras has resigned as a voting Committee member as Mr Mackerras has been appointed to the position of Lake Wyangan and Catchment Management Project Officer.

RECOMMENDED on the motion of Councillors Brian Simpson and Doug Curran that the Committee accept the resignation from Mr Mackerras and congratulate him on his appointment to new role.

6.2 Media Release

Mr Stonestreet advised a Media Release is being prepared regarding the disturbance of the Aboriginal artefacts. Councillor Curran suggested Council obtain input from Griffith Local

Aboriginal Lands Council representatives to ensure the Aboriginal community is consulted with on an ongoing basis.

RECOMMENDED on the motion of Councillor Doug Curran and John McFadzean that Stephen Young, Vickie Simpson and Mat Ryan be appointed as members of the Committee.

Mr Young advised he was looking forward to the opportunity to working together with Council and bringing the community together.

Mr Harding raised the issue of the AHIP process and advised one application will be required for the access track and another for the wetlands project. The Committee agreed to proceed with both applications.

7 NEXT MEETING

The next meeting of the Lake Wyangan & Catchment Management Committee is to be held Tuesday 6 October 2020.

There being no further business the meeting terminated at 7:53 pm.

Confirmed:

CHAIRPERSON

**COMMUNITIES COMMITTEE
HELD IN MURRAY ROOM, GRIFFITH ON
THURSDAY, 23 JULY 2020 COMMENCING AT 4:01 PM**

PRESENT

Councillor Dino Zappacosta (Chair), Councillor Glen Andreazza, Manjit Singh Lally (Community Representative), Monica Beckman (Community Representative), Patricia Cox (Community Representative)

Quorum = 3

STAFF

Director Economic & Organisational Development, Shireen Donaldson, Community Development Officer, Tanya Aramini and Minute Secretary, Joanne Bollen.

1 APOLOGIES

RECOMMENDED on the motion of Councillor Glen Andreazza and Manjit Singh Lally that an apology be received from Peta Dummett (Communities Development Coordinator).

2 CONFIRMATION OF MINUTES

RECOMMENDED on the motion of Manjit Singh Lally and Pat Cox that the minutes of the previous meeting held on 18 February 2020, having first been circulated amongst all members, be confirmed.

3 BUSINESS ARISING

3.1 Parkrun

The Parkrun event was postponed due to Covid-19. Tanya Aramini to follow up to see if there is a possibility to run at a later date.

3.2 Citizenship Ceremony May 2020

The Citizenship Ceremony scheduled for May 2020 was cancelled due to Covid-19.

3.3 Youth Committee

The Youth Committee social media pages have been reactivated due to social gathering restrictions.

3.4 Master Locksmiths Access Key (MLAK)

There was a legal ruling to remove the MLAK lock on disabled toilets. Since this has commenced there has been consistent vandalism and drug use in the disabled toilets.

4 DECLARATIONS OF INTEREST

Pecuniary Interests

There were no pecuniary interests declared.

Significant Non-Pecuniary Interests

There were no significant non-pecuniary interests declared.

Less Than Significant Non-Pecuniary Interests

There were no significant non-pecuniary interests declared.

5 ITEMS OF BUSINESS

CL01 RESIGNATION OF COMMITTEE MEMBER

Resignations received from Committee members Lexi Hone and Judy Johnson. Sue Reynolds will be asked if she wishes to step up from an alternate member and Judy Johnson will be consulted in regards to nominating a member. Letters of thanks to be sent to both Lexi and Judy.

RECOMMENDED on the motion of Councillor Glen Andreazza and Monica Beckman that the information be received.

CL02 COVID 19 COMMUNITY GRANTS RELIEF FUND

A set of Guidelines was established.

The Guidelines are as follows:

- Project or resources requested must be directly related to COVID19
- Ongoing administrative or operational costs not eligible
- Capital purchases must be directly related to or demonstrable against losses incurred due to COVID19
- Evidence and supporting documents demonstrating impact of COVID19 should be supplied
- Projects and organisations must be in the Griffith Local Government Area.

The Committee reviewed and compiled recommendations in relation to the Grant Applications received.

RECOMMENDED on the motion of Pat Cox and Manjit Singh Lally That the information be received and recommendations made to Council on 11 August 2020 for the final decision.

6 GENERAL BUSINESS

Nil

7 NEXT MEETING

The next meeting of the Communities Committee is to be held on Tuesday, 18 August 2020 at 4:00 pm.

There being no further business the meeting terminated at 4.57 pm.

Confirmed:

CHAIRPERSON

**TRAFFIC COMMITTEE
HELD IN MURRAY ROOM, GRIFFITH ON
TUESDAY, 11 AUGUST 2020 COMMENCING AT 10:29 AM**

PRESENT

Councillor Doug Curran (Chair), Greg Minehan (Transport for NSW, via ZOOM), Nicola Gentle (Transport for NSW, via ZOOM)

STAFF

Engineering Design & Approvals Manager, Joe Rizzo, Road Safety & Traffic Officer, Greg Balind and Assistant Engineer - Traffic & Civil, James Tomarchio and Minute Secretary, Melanie Hebrok

1 APOLOGIES

RECOMMENDED on the motion of Greg Minehan and Councillor Doug Curran that apologies be received from Member for Murray Representative, Michael Crump and Police Representatives.

2 CONFIRMATION OF MINUTES

RECOMMENDED on the motion of Greg Minehan and Councillor Doug Curran that the minutes of the previous meeting held on 9 June 2020, having first been circulated amongst all members, be confirmed.

3 BUSINESS ARISING

3.1 Temporary Speed Zone Reduction – Murphy Road

Mr Minehan asked for an update on the expected completion date for road works, with Mr Tomarchio advising he would pass on the information as soon as it was received.

Joe Rizzo entered the meeting, the time being 10:31 am.

3.2 Kidman Way Speed Zone Review

Mr Minehan advised he has been in contact with the Deputy Secretary regarding the status of the 50km/h speed zone extension on Kidman Way. The hold up was due to the funding variation approval for street lights and the information would be forwarded as soon as it became available.

3.3 Continuity of Approved Traffic Management 2020 Vintage Festival

Mr Minehan enquired about the status of the event in light of current restrictions on mass gatherings. Mr Balind advised that while it had not been confirmed as yet, he was expecting the organisers to either place restrictions on numbers to be in line with NSW Health

guidelines, or postpone the event to the following year, similar to other big events such as Griffith's Biggest Lap.

Nicola Gentle entered the meeting via ZOOM, the time being 10:34 am.

3.4 Intersection Crossing Street / Banna Avenue

The Committee discussed the urgency of the matter, with reports that drivers were ignoring the recently placed 'No U-turn' signs. Mr Minehan to liaise with Mr Buckley and Ms Gentle (TfNSW) and report back with possible options.

4 DECLARATIONS OF INTEREST

Pecuniary Interests

There were no pecuniary interests declared.

Significant Non-Pecuniary Interests

There were no significant non-pecuniary interests declared.

Less Than Significant Non-Pecuniary Interests

There were no significant non-pecuniary interests declared.

5 ITEMS OF BUSINESS

CL01 PROPOSED LOADING ZONE - COOLAH STREET - MURRUMBIDGEE REGIONAL HIGH SCHOOL

RECOMMENDED on the motion of Greg Minehan and Councillor Doug Curran that the Traffic Committee recommend:

- (a) The implementation of a Loading Zone and associated signs on the southern side of Coolah Street to the west of Willandra Avenue as per the attached plan
- (b) The Loading Zone be timed 8am – 4pm School Days Only

6 OUTSTANDING ACTION REPORT

The Committee discussed and updated the Outstanding Action Report.

7 GENERAL BUSINESS

7.1 Directional Signage Request

Mr Minehan asked Mr Tomarchio to clarify whether a request received from a local business for directional signage was for a TASAC or advisory sign, with Mr Tomarchio noting the applicant was ineligible for TASAC and would await TfNSW recommendations. Mr Minehan to investigate whether requirements are met for directional signage.

7.2 Truck Route Signage Intersection Jones / Lakes Road

Mr Rizzo advised that a request has been received from developers of a proposed almond milk factory for directional signs on Jones Road heading west indicating the left turn onto

Lakes Road for the heavy vehicle route. The Committee agreed that the request should be brought back as a formal recommendation to the next meeting.

7.3 Griffith Cycle Club Interclub Racing Event

Mr Tomarchio tabled a letter received from the Griffith Cycle Club wishing to postpone their annual event originally scheduled for 17 May 2020 to 13 September 2020. The event had been approved at the August 2019 meeting, with no changes to the route proposed. Mr Minehan noted that the documents made reference to outdated acronyms (RTA/RMS) which needed to be rectified.

RECOMMENDED on the motion of Greg Minehan and Councillor Doug Curran that the Traffic Committee approve the Traffic Management Plan for the Griffith Cycle Club's 2020 Interclub racing event for the new date of 13 September 2020 subject to:

- (a) COVID-19 NSW Health restrictions; and
- (b) Amendments to incorrect terminology in the TMP.

7.4 Kooyoo Street Signage

Mr Tomarchio advised that requests have been received to increase the size of the signs signalling the restriction of vehicles to a maximum length of 12.5 metres along Kooyoo Street between Banna Avenue and Canal Street from 600x400 to at least 1200x800. Mr Rizzo noted that a size increase may not be enough to enhance visibility and the signs may need to include visuals additional to the current wording, similar to signage in Banna Avenue. This would also ensure consistency with regard to signage in the CBD.

Staff to forward pictures of the current signage to Mr Minehan. Options to be brought back to the Committee for discussion.

7.5 Truck Parking at Service NSW

Mr Tomarchio advised that the signs for the designated Service NSW test truck parking bay in Canal Street were also found to be too small and suggested that repeater signs be installed. Mr Minehan asked for pictures of current signage to be forwarded for discussion.

7.6 Wilga Street Parking

Mr Balind advised that the Hanwood School P&C have asked for implementation of a no stopping zone on one side of Wilga Street opposite the school to ease congestion and facilitate parking at the school during pick up and drop off time. Councillor Curran suggested that the school consult with affected residents in the first instance.

7.7 Blumer Avenue Service Lane Turn Off

Mr Balind advised that an issue has been raised regarding vehicles waiting for extended periods of time to perform a right hand turn from the service lane behind Granite Transformations onto Blumer Avenue; due to build up at the traffic lights at the Banna Avenue/Mackay Avenue intersection. Mr Balind advised there was a request for a keep clear zone to be implemented in the area to stop queuing across the gap in the center median strip to allow the right turn out of Granite Transformations onto Blumer Avenue.

The Committee discussed the sight distance issue created due to vehicles queuing at the traffic lights along Blumer Avenue as they block sight distance for the vehicles turning right out of Granite Transformations. Mr Rizzo advised that the issue had been discussed with the applicant of the Granite Transformations development at Development Application stage, with the centre median strip gap implemented to allow exiting Granite Transformations, however only when it was safe to do so.

7.8 Wakaden Lane School Bus Pick Up/ Drop Off

Mr Balind informed the Committee that he has been approached regarding safety concerns for students accessing the pick up point for the St Francis school bus in Wakaden Lane. He advised Council staff have not identified major safety issues however the bus company has indicated they would be liaising with TfNSW to facilitate a more appropriate pick up/drop off zone.

Ms Gentle suggested that this may be an opportunity to offer TfNSW behavioural education programs.

7.9 Thorne Road Roundabout Visibility

Councillor Curran advised he has been asked to raise an issue with regard to poor sight distance heading northbound into the Thorne Road roundabout near Forlico's due to trees and shrubs obstructing the view. Mr Rizzo advised that design requirements were met at the time of construction but he would check if there have been changes since, with Mr Minehan also agreeing to investigate and report back to the next meeting.

8 NEXT MEETING

The next meeting of the Traffic Committee is to be held on Tuesday, 8 September 2020 at 10:30 am.

There being no further business the meeting terminated at 11:31 am.

Confirmed:

CHAIRPERSON

**GRIFFITH COMMUNITY CENTRE COMMITTEE
HELD IN COUNCIL CHAMBERS, GRIFFITH ON
WEDNESDAY, 5 AUGUST 2020 COMMENCING AT 2:30 PM**

PRESENT

John Dal Broi (Chair) (Mayor), Councillor Deb Longhurst, Rina Mercuri (Councillor - Alternate), Lynda Lane (Community Representative), Jenna Thomas (Community Representative), Oumi Karenga - Hewitt (Community Representative (Alternate)

Via phone: Jennifer Chapman (Community Representative)

Quorum = 4

STAFF

Brett Stonestreet (General Manager), Peter Badenhorst (Principal Planner Urban Design & Strategic Planning) and Laura Vitucci (Minute Secretary).

1 APOLOGIES

RECOMMENDED on the motion of Councillor Longhurst and Councillor Mercuri that apologies be received from Councillor Anne Napoli, Anthony Catanzariti (President, Griffith Neighbourhood Centre) and Nathan Beer (Project Planner, Griffith City Council).

2 CONFIRMATION OF MINUTES

RECOMMENDED on the motion of Jenna Thomas and Councillor Longhurst that the minutes of the previous meeting held on 4 March 2020, having first been circulated amongst all members, be confirmed.

3 BUSINESS ARISING

Nil

4 DECLARATIONS OF INTEREST

Pecuniary Interests

There were no pecuniary interests declared.

Significant Non-Pecuniary Interests

There were no significant non-pecuniary interests declared.

Less Than Significant Non-Pecuniary Interests

There were no significant non-pecuniary interests declared.

5 ITEMS OF BUSINESS

CL01 GRIFFITH COMMUNITY CENTRE - DESIGN & CONSTRUCT UPDATE

Mr Stonestreet thanked the Committee for their patience given that the previous Committee meeting was held in March 2020. Mr Stonestreet provided the Committee with an update on the following:

- Tender for construction awarded to Hines Construction.
- Development Application has been submitted and target approval date has been set at 21 August 2020.
- Before works can commence on site, a Construction Certificate is required with documentation currently being prepared. Target approval date set for the end of first week in September 2020.
- Total project completion date: end of May 2021.
- First key funding deadline to be complete by end of September 2021 which includes 20% of expenditure.

Mr Badenhorst advised that he is currently investigating options with contractor to ensure high value items are purchased within the next month to ensure 20% expenditure target is met.

Ms Thomas questioned whether there was any flexibility with funding body with regard to expenditure. Mr Stonestreet advised that Council has already renegotiated funding milestones with regard to alternate designs.

Mr Stonestreet advised that a meeting was held on 14 May 2020 with representatives of the Griffith Community Centre Inc. and Country Universities Centre Western Riverina (CUCWR). Meeting was to discuss colour scheme for new building. A further meeting was held with Mr Anthony Catanzariti to discuss the furniture requirements for the Community Centre component of the building.

Mr Badenhorst noted that he has supplied Mr Catanzariti with a copy of the building plan seeking feedback on location of work stations so that data and electrical points can be included.

Mr Stonestreet advised that prior to the Development Application being lodged, it was noted that the retention of stormwater on site did not meet the 1:100 year flood event standard. Mr Stonestreet noted that the swale along Ulong Lane at the back of the Centre will be able to retain any excess storm water not captured in the allocated tanks. Issue considered resolved.

The Committee members questioned the colour scheme chosen by the Griffith Community Centre Inc and CUCWR. However, it was noted by Mr Badenhorst that the colour scheme will suit the vibrant location and the personnel accessing the facility.

Ms Thomas questioned whether the CUCWR are still involved in the Centre with the Mayor advising that their funding has been approved and they are all in agreement. Mr Badenhorst noted that there will be a shared space between the CUCWR and the Community Centre Inc.

Mr Stonestreet advised that a carpark will be constructed on the western side of the facility on the adjoining lot. Council will be funding the construction of the carpark.

CL02 DRAFT MEMORANDUM OF UNDERSTANDING

Mr Stonestreet highlighted the need for a draft Memorandum of Understanding (MOU) between Griffith City Council and the Griffith Community Centre Incorporated. MOU to be a guidance document on how the facility is managed and suggested the following as a starting reference point:

- Griffith City Council proposes to lease the Community Centre section of the building to Griffith Community Centre Inc.
- Griffith Community Centre Inc. to sub-lease to service organisations.
- Peppercorn rent per year. Operational and general maintenance costs would be the responsibility of the Committee. Councillor Longhurst noted that during the EOI stage, a per square metre cost for sub leasing was identified as an indicative charge.
- Asset will remain under Griffith City Council and Council will include an option for Council to direct lease to service providers.
- Management of shared spaces within the Centre to be worked into the MOU
- Griffith City Council will lease the CUCWR part of the building to the CUCWR Board

Ms Thomas questioned whether there will be separate electricity meters for each area with Mr Stonestreet advising that there would be separate electricity meters for the CUCWR and Griffith Community Centre Inc.

ACTION: Mr Stonestreet to write to Griffith Community Centre Inc. to invite submissions for the creation of a draft Memorandum of Understanding.

6 GENERAL BUSINESS

Mr Stonestreet advised that he has received an email from Ms Barbara Penninga advising that she has resigned from her position as Coordinator at Griffith Community Centre Inc. and that today (Wednesday, 5 August 2020) would be her last day.

RECOMMENDED on the motion of Lynda Lane and Oumi Karenga-Hewitt that the Committee accept the resignation of Barbara Penninga and that a letter of thanks be forwarded to Barbara.

7 NEXT MEETING

The next meeting of the Griffith Community Centre Committee is to be held on Wednesday, 2 September 2020 at 4.00pm

There being no further business the meeting terminated at 3.15pm.

Confirmed:

CHAIRPERSON

TITLE Outstanding Action Report

TRIM REF 20/62244

RECOMMENDATION

The report be noted.

ATTACHMENTS

(a) Outstanding Action Report [↓](#)

94

Council Meeting Date	MEETING ITEM	Action Officer	CRM No.	Minute No.	Council Resolution	Additional Information
28 July 2020	CL08 - LOCAL GOVERNMENT NSW ANNUAL CONFERENCE 2020	PA	89650	20/239	RESOLVED on the motion of Councillors Brian Simpson and Glen Andreazza that: (a) The Mayor, three Councillors (Councillors Brian Simpson, Doug Curran and Glen Andreazza) and the General Manager (or his delegate) attend the 2020 Local Government NSW Annual Conference to be held at the Hunter Valley (Lovedale) from Sunday 22 to Tuesday 24 November 2020. (b) Expenses for attendance at the 2020 Local Government NSW Annual Conference be paid in accordance with Council policy. (c) Council determine any motion(s) for inclusion in the Conference business paper such that they can be lodged with LGNSW by the deadline being Monday 28 September 2020. These draft motions are to be submitted to the General Manager by Friday 4 September 2020 to enable them to be reported to Council and endorsed. (d) Council confirm the three voting delegates at the LGNSW Conference to be the Mayor, Councillor Doug Curran and Councillor Brian Simpson.	7/8/2020: Contact has been made with authorised delegates, accommodation secured.

28 July 2020	CL06 - SCHEMATIC DESIGN OPTIONS - GRIFFITH REGIONAL SPORTS PRECINCT PROJECT (WESTEND OVAL SITE)	DNCFS	89649	20/238	RESOLVED on the motion of Councillors Glen Andreazza and Mike Neville that: (a) Council note that in accepting the contract to construct the new 50m pool adjacent to the Griffith Regional Aquatic Leisure Centre facility that the size of the pool in relation to the original concept design has increased by 32% as per the resolution of Council at Ordinary Meeting held 24 March 2020. (b) As a consequence of the increase in scope of the 50M pool Council endorse additional budget of \$1,650,000. (c) Council endorses Plan No. 2 (as attached to the report) in principle as the preferred Schematic Plan for the development of the Westend Oval site. (d) A further report will be prepared for Council at the completion of the construction tendering process for Westend Oval which will address the final funding component required to complete the Griffith Regional Sports Precinct project. (e) Subject to endorsement of (b) above Council will note the current project budget will increase to \$26,450,000 with the additional funding of \$1,650,000 to come from general revenues and	17/08/2020: Resolution noted, budget adjusted. Westend Oval schematic plan undergoing final adjustments prior to detailed design.
--------------	--	-------	-------	--------	---	---

					applicable S7.12 reserves.	
14 July 2020	NOTICE OF MOTION - COUNCILLOR ANDREAZZA - APPLICATION FOR FUNDING FIXING LOCAL ROADS ROUND TWO	DIO	88911	20/204	RESOLVED on the motion of Councillors Glen Andreazza and Christine Stead that Griffith City Council applies to the State and Federal Governments, if required, to put forward Barber Road, south of Brogden Road to Twaddell Road, and possibly Bringagee Road for upgrade and sealing under the "Fixing Local Roads" Round Two program.	03/08/2020: Will be referred to external consultant to undertake design and costing.
14 July 2020	CC01 - TERMINATION OF LICENCE AGREEMENT 68 DRUITT ROAD, LAKE WYANGAN AND FUTURE PROPOSALS FOR THE PROPERTY	CPO	88912	20/208	RESOLVED on the motion of Councillors Rina Mercuri and Eddy Mardon that: (a) Council accept the termination of licence agreement with Antonio Romeo over Lot 4 DP 1067284, Lake Wyangan as of 31 July 2020 on payment of all fees and charges. (b) Rural Fire Service be required to submit an application to subdivide the shed from Lot 4 DP 1067284. (c) Council conduct an Expression of Interest process for the sale of Lot 4 DP 1067284, 68 Druitt Road, Lake Wyangan, being Council owned land at Lake Wyangan or; (d) Council appoint a local Real Estate Agency to undertake the sale of Lot 4 DP 1067284, 68 Druitt Road, Lake Wyangan by the preferred process as recommended by the agency.	03/08/2020: Leasee notified. Obtaining quotes from real estate agents.

					(e) 65 megalitres of High Security Water allocation be transferred to Council's water trading allocation. (f) A further report be presented to Council if an offer to purchase the land is received. (g) The net proceeds from any sale be returned to Council's Water Fund.	
23 June 2020	MM01 - LOCAL ROADS AND COMMUNITY INFRASTRUCTURE PROGRAM - FOOTPATH INFRASTRUCTURE	DI&O	87902	20/180	RESOLVED on the motion of Councillors Dino Zappacosta and Doug Curran that Council submit the construction of a footbridge over the supply channel (Noorla Street to Merrigal Street) to the Federal Government under the Local Roads and Community Infrastructure Program.	20/07/2020: Work schedules submitted to Federal Government funding agency.
9 June 2020	CL02 - NEW CEMETERY & CREMATORIUM DRAFT MASTERPLAN - PUBLIC EXHIBITION	DIO	87303	20/155	RESOLVED on the motion of Councillors Doug Curran and Mike Neville that: (a) The Report be raised from the table. (b) Council place the Draft Cemetery & Crematorium Masterplan on public exhibition for 42 days. (c) Formal presentation of the New Cemetery & Crematorium Draft Masterplan to be presented to community members via ZOOM or in person if permissible whilst adhering to COVID-19 restrictions. (d) If any submissions are received, a further report be prepared for Council for consideration. (e) If no submissions are received, the	3/07/2020: On exhibition, closing date 31 July 2020 20/07/2020: Live online forum will be held on Thursday 23 July 2020. 03/08/2020: Submissions to be presented to workshop 18/08/2020.

					Cemetery & Crematorium Masterplan be considered as adopted by Council as at the date of the conclusion of the advertised exhibition period.	
9 June 2020	CL03 - ADOPTION OF DRAFT UTILITIES DIRECTORATE'S PUBLIC POLICIES	DU	87305	20/156	RESOLVED on the motion of Councillors Brian Simpson and Doug Curran that: (a) Council endorse the Utilities Directorate's reviewed policies for public exhibition for a period of 28 days excluding WS-CP-202 Water Supply and Charges. (b) Following the public exhibition period, if no submissions are received, the policies be considered formally adopted at the date of the close of the submission period. (c) Policies that receive a submission be reported back to Council. (d) A report be presented to Council on WS-CP-2020 Water Supply and Charges and a Water Position Statement to be presented at a Council Workshop.	17/07/2020: Director Utilities preparing report for Council and Workshop 06/08/2020. 17/08/2020: Report to Council Meeting 8 Sept. 2020.
26 May 2020	CL04 - DRAFT PLAN OF MANAGEMENT - TED SCOBIE SPORTS OVAL - LOT 1 DP 40048	CPO	86696	20/135	RESOLVED on the motion of Councillors Mike Neville and Rina Mercuri that: (a) Council refer the draft Plan of Management for Reserve 240002, Lot 1 DP 40048 Ted Scobie Sports Oval, to the Minister Administering	29/05/2020: The Draft Plan of Management together with Form A -No Alteration to categorisation or no new Category together with the Council resolution was emailed to

					the Crown Land Management Act 2016 for approval. (b) Upon approval from the Minister Administering the Crown Land Management Act 2016 Council amends the draft Plan of Management for Ted Scobie Sports Oval if required and places it on public exhibition as per Section 38 of the Local Government Act 1993. (c) Native Title Manager advice will be provided prior to the final adoption of the Plan of Management of Ted Scobie Sports Oval, as is required. (d) A report be presented to Council to adopt the final Plan of Management for Ted Scobie Sports Oval on completion of the public exhibition period and to consider all submissions.	Crown lands for consideration and approval to place the Draft Plan of Management on public exhibition.
28 April 2020	CL07 - PLAN OF MANAGEMENT - KOOKORA STREET PARK - LOT 1 SECTION 127 DP 758476 - PART CROWN RESERVE 81439	CPO	85599	20/112	RESOLVED on the motion of Councillors Rina Mercuri and Christine Stead that: (a) Council refer the draft Plan of Management for part Reserve 81439, Lot 1 Section 127 DP 758476, Kookora Street Park to the Minister Administering the Crown Land Management Act 2016 for approval. (b) Upon approval from the Minister Administering the Crown Land Management Act 2016 Council amends the draft Plan of Management if required and places	4/5/2020: Draft Plan of Management emailed to the Crown for approval to place on public exhibition.

					it on public exhibition as per Section 38 of the Local Government Act 1993. (c) Council hold a public hearing to alter the categorisation of the land to General Community Use. (d) Native Title Manager advice will be provided prior to the final adoption of the Plan of Management, as is required. (e) A report will be presented to Council to adopt the final Plan of Management, on completion of the public exhibition period and public hearing requirement. The General Manager advised he would take the public hearing requirement on notice due to the current COVID-19 restrictions.	
28 April 2020	CL09 - CALL FOR PUBLIC SUBMISSIONS - GRIFFITH LOCAL STRATEGIC PLANNING STATEMENT, GRIFFITH LAND USE STRATEGY, GRIFFITH LOCAL ENVIRONMENTAL PLAN 2014	SP	85601	20/114	RESOLVED on the motion of Councillors Doug Curran and Mike Neville that: (a) Council request general public submissions be received for a period of 45 days regarding amendments to the existing Griffith Land Use Strategy: Beyond 2030 and the Griffith Local Environmental Plan 2014 to inform the drafting of the Local Strategic Planning Statement. (b) Council carry out a public information and advertising campaign including television, the	7/5/2020: On Exhibition, Closing Date: Monday, 15 June 2020. 3/7/2020: Submissions received, report to be prepared for Council. 20/07/2020: Report to Council Workshop 21 July 2020. 03/08/2020: Report to Council Meeting 25/08/2020.

					internet and newspaper to educate the public on the planning system, the strategic planning exercises underway, how they or their land could be impacted and what is being requested by way of submissions. (c) A further report be provided for Council to consider the submissions received including an assessment of the merit of each and implementation strategies.	
11 February 2020	CL02 TRANSFER OF DRAINAGE CHANNEL FROM MURRUMBIDGEE IRRIGATION LIMITED TO COUNCIL	CPO	82202	20/038	RESOLVED on the motion of Councillors Rina Mercuri and Glen Andrezza that: (a) Council approve the transfer of drainage channel Lot 2 DP 1193681 from Murrumbidgee Irrigation Limited to Council. (b) Council pay all costs and charges in relation to the transfer of Lot 2 DP 1193681 from Murrumbidgee Irrigation to Council. (c) Council authorise the General Manager and Mayor to execute all transfer documents on behalf of Council under the Common Seal, if so required. (d) Lot 2 DP 1193681 be classified as operational land on transfer to Council. (e) Council give public notice of the proposal to declare Lot 2 DP 1193681 as operational land	2/3/2020: Councils legal representative instructed to prepare the transfer documents. On transfer an advert will be placed in The Area News regarding the proposed classification as operational land. 10/06/2020: Contract of sale has been prepared and awaiting signature from Murrumbidgee Irrigation.

					allowing 28 days to receive submissions. (f) Should submissions be received as part of the notification process, a separate report be presented to Council for consideration. (g) Should no submissions be received Lot 2 DP 1193681 be declared operational land.	
11 June 2019	CL04 – GRIFFITH REGIONAL SPORTS PRECINCT PROJECT	MT	72186	19/186	RESOLVED on the motion of Councillors Dino Zappacosta and Mike Neville that; (a) That Council endorse the existing Proposed Plan Stage 1 for the Griffith Regional Aquatic Leisure Centre (GRALC) Development for the construction of a 50m Pool, amenities facilities, new plant room and associated landscaping to meet the requirements of the Griffith Regional Sports Precinct Project and associated funding agreements. (b) That Council endorse in principle the Future Aspirational Master Plan for the Griffith Regional Aquatic Leisure Centre. (a) That Council staff commence preliminary consultation with key stakeholders to assist in informing the detailed design requirements for the Project including the redevelopment of West end Oval and GRALC Stage 1.	20/04/2020: New 50M pool GRALC Design and Construct contractor has been appointed (Hines Construction). Report to Council 28 April Meeting recommending design contractor for Westend Stadium component. 11/5/2020: Architects appointed for detailed design of Westend Oval as per resolution of Council on 28 April 2020. 20/07/2020: Report to Council 28 July 2020. 03/08/2020: Council resolved to endorse revised scope and additional funding for pool component, and in principle support for Plan 2.

28 May 2019	CC04 – ILLEGAL EARTHWORKS	DIO	71710	19/171	RESOLVED on the motion of Councillors Mike Neville and Deb Longhurst that Council proceed with legal action as described in this report.	17/06/2019: Legal action enacted. Matter has been progressed through Council's legal representatives. 18/11/2019: DA to be submitted by adjoining landowner to reinstate road reserve. 2/3/2020: Valuer General has advised Council of \$ compensation to land owner. Matter being progressed with legal representatives. 20/04/2020: Compensation has been paid for the property. 12/6/2020: Meeting held with legal representatives to progress court action.
-------------	----------------------------------	-----	-------	--------	--	---